

COMPLETE LEARNING SESSION

Justice: Concepts and Dimensions - Complete Topic Package

UPSC complete learning session | Foundation to advanced | Concepts, evidence, practice and answer writing

Justice: Concepts and Dimensions

TEN-SESSION CORE PATH • PRACTICE • OPTIONAL ADVANCED • REGISTER NOTES

1

Gauba's Allocative Frame, Rightness and Dynamic Justice

2

Traditional Justice, Social Justice and Barker's Ordering

3

Law, Legality and the Institutional Dimensions of Justice

4

Aristotle, Distribution and Corrective Justice

5

Procedural Liberalism, Background Inequality and Macpherson

6

Nozick, Merit, Need and Desert

7

Rawls, Sen and the Information of Justice

8

Recognition, Representation and Indian Applications

9

Objection-Reply Chains and Directive Control

10

Argument Architecture, Provenance and Final Recall

Original deterministic study visual; labels are explanatory, not textual quotations.

Source order: repository knowledge -> official current linkage -> clearly marked analysis. No fabricated PYQs or statistics.

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Major learning parts and meaningful subtopics are listed in document order. Page numbers are generated from the final PDF layout; PDF bookmarks mirror the same hierarchy.

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Justice: Concepts and Dimensions - Complete Topic Package

Subject: Political Theory **Section:** Subject-wide Syllabus **Generation:** learner-v2:g2 **Ownership:** supplementary conceptual support; no synthetic GS or Optional PYQ ownership is created. **Source policy:** complete Basic owner first; optional Advanced depth only after practice.

2026 CURRENT ANCHOR - NATIONAL OVERSEAS SCHOLARSHIP

FACT: Official fact: The Ministry of Social Justice and Empowerment's National Overseas Scholarship page links guidelines applicable from 2026-27. It states that the scheme supports low-income meritorious students from Scheduled Castes, De-notified Nomadic and Semi-Nomadic Tribes, landless agricultural labourer and traditional-artisan categories for master's or PhD study abroad. The official page lists 125 annual slots - 115, 6 and 4 for the respective category groupings - and earmarks 30 per cent of scholarships for female candidates.

ANALYSIS: Conceptual use: The scheme illustrates substantive opportunity, group-sensitive inclusion and representation. It does not by itself prove Rawls's, Sen's or any constitutional theory of justice.

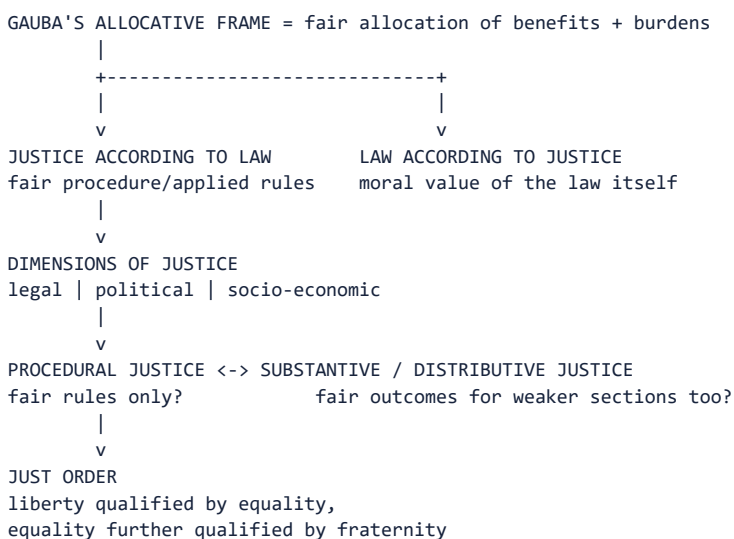
Official source: <https://socialjustice.gov.in/schemes/28>

BASIC LEARNING SESSION

SESSION 1 - Gauba's Allocative Frame, Rightness and Dynamic Justice

Subject: Political Theory | **Tier:** Must-Do (foundation) | **GS/Optional relevance:** GS-II (Polity & Governance) conceptual foundation; PSIR Optional Paper-1 background. **Core area:** Justice as allocation, legal/political/socio-economic justice, and procedural versus substantive justice. **Grounded in:** O. P. Gauba, *An Introduction to Political Theory*, Fifth Edition (2009), Ch.19, PDF pp.432-445. **Source edition/cutoff:** Fifth Edition (2009); no post-2009 fact is assumed unless independently dated and tagged CURRENT:. **FACT:** = source-grounded | **ANALYSIS:** = analytical inference/synthesis | **CURRENT:** = dated current anchor | **WRONG:** = trap/misattribution. *Companion:* Political-Theory/advanced/19_Justice-Concepts-and-Dimensions.md.

1. One-screen conceptual map



FACT: Gauba defines justice as the problem of allocating goods, services, opportunities, benefits, power, honours and obligations in a scarcity situation, and then unfolds its legal, political and socio-economic dimensions (Gauba, PDF pp.432-433, 439-444).

2. Why this topic matters

- FACT: Justice is the bridge-topic that takes liberty, equality and fraternity out of slogan form and turns them into an ordering principle for public life (Gaubu, PDF pp.436-438).
- FACT: Gauba insists that justice cannot be reduced either to legal regularity alone or to vague moral feeling; it is both a question of procedures and of the value-content of social arrangements (Gaubu, PDF pp.439-444).
- ANALYSIS: This topic matters in UPSC because many governance, rights, welfare and democracy questions silently ask: fair by what rule, and fair for whom?
- ANALYSIS: If Topic 18 explains the building blocks, this topic explains the ordering logic that binds them into a just society.

3. Essential definitions

Term	Exam-ready meaning
Justice	FACT: Gauba introduces justice through the fair allocation of benefits and burdens, especially where valued goods are scarce and criteria are open to contestation; this is his chapter frame, not an exhaustive definition of every form of justice (Gaubu, PDF pp.432-433).
Open society	FACT: A society where existing arrangements may be criticized and revised through public reasoning, making the search for justice meaningful (Gaubu, PDF p.433).
Legal justice	FACT: Justice in the legal sphere may mean either fair administration according to existing law or testing law itself against standards of justice (Gaubu, PDF pp.439-440).
Political justice	FACT: Transformation of institutions, rights and procedures so that political power reflects the people rather than privileged groups (Gaubu, PDF pp.440-441).
Socio-economic justice	FACT: Reordering social and economic relations so that exploitation is checked and the material and moral gains of social life reach weaker sections (Gaubu, PDF pp.441-442).
Procedural justice	FACT: Justice secured through fair rules, impartial application and non-cheating, often modeled on market or competition rules (Gaubu, PDF pp.442-444).
Substantive / distributive justice	FACT: In this chapter Gauba treats substantive, social and distributive concerns together: justice is judged by whether actual arrangements improve the condition and life-chances of the poor and underprivileged, not by procedure alone. The terms are not universally synonymous across political theory (Gaubu, PDF pp.442-445).
Social justice	FACT: In Gauba's modern usage, a progressive demand to transform oppressive social conditions and secure what is due to the underprivileged from organized social life (Gaubu, PDF pp.438-442).

4. Core argument / chapter spine

1. FACT: Gauba frames justice as a political allocation question where social advantages are scarce and their distribution can be openly debated and revised; corrective, penal and other justice questions need not all take this allocative form (Gaubu, PDF pp.432-433).
2. FACT: Gauba distinguishes good/bad from right/wrong and treats justice as aligned with the latter: a question of what is right and reasonable, not merely what is useful. This is his anti-utilitarian contrast, not proof that every utilitarian theory is incapable of giving an account of justice (Gaubu, PDF pp.433-435).
3. FACT: Justice is dynamic because social consciousness changes; arrangements once accepted as just may later be condemned as unjust, as with slavery, serfdom or caste-based degradation (Gaubu, PDF pp.435-436).
4. FACT: Ernest Barker's key point is that justice orders liberty, equality and fraternity into an integrated whole rather than leaving them as three isolated slogans (Gaubu, PDF pp.436-438).

5. FACT: Modern social justice shifts emphasis from the virtuous individual in a fixed order to the just society that must transform oppressive conditions themselves (Gauba, PDF pp.438-439).
6. FACT: Justice then appears in legal, political and socio-economic dimensions, which are distinct for analysis but continuous in practice (Gauba, PDF pp.439-442).
7. FACT: The contemporary debate finally turns on whether fair procedure is enough, or whether fair distribution and real improvement for weaker sections are the primary tests of justice (Gauba, PDF pp.442-445).
8. ANALYSIS: The chapter's answer-ready core is: justice means fair rules plus fair social purpose, with minimum needs secured before differential rewards are defended.

SESSION 2 - Traditional Justice, Social Justice and Barker's Ordering

5. Essential distinctions

Justice according to law vs law according to justice

Distinction	What to say precisely
Justice according to law	FACT: This asks whether decisions are made by general rules, applied impartially and efficiently under existing law; Alf Ross represents this line (Gauba, PDF pp.439-440).
Law according to justice	FACT: This asks whether the law itself has moral value and conforms to what is right-in-itself; Ernest Barker represents this line (Gauba, PDF p.440).
Core warning	WRONG: If law is valid, it is automatically just. -> FACT: Gauba prefers Barker's view that validity and value are distinct, and that law is strongest when it has both authority and justice (Gauba, PDF p.440).

Procedural justice vs substantive/distributive justice

Distinction	What to say precisely
Procedural justice	FACT: It stresses fair rules, impartiality and absence of force or fraud, much like a fair race where cheating is disallowed (Gauba, PDF pp.442-444).
Substantive / distributive justice	FACT: In Gauba's chapter usage, it stresses whether the poor and underprivileged gain real opportunities to improve their lot, even if this requires altering background structures and not just policing rules; substantive and distributive justice remain distinguishable in wider theory (Gauba, PDF pp.444-445).
Core warning	WRONG: A procedurally regular result is automatically substantively just. -> FACT: Gauba rejects that simplification because open competition inside deep inequality can still leave many trapped in sub-human conditions (Gauba, PDF pp.442-445).
Balance point	ANALYSIS: Due process still matters; substantive justice does not erase the need for impartial procedures.

6. Thinkers and positions

Thinker	Position in this chapter
Plato	FACT: Justice in the traditional sense means each part of the soul and each class in the state doing its proper function under rule of reason; Gauba treats this as a classic conservative/functional view (Gauba, PDF pp.438-439).
D.D. Raphael	FACT: Justice should be read through modern consciousness; legal, political and social change alter what counts as just (Gauba, PDF pp.435-436, 439).
Ernest Barker	FACT: Justice is the integrating principle behind liberty, equality and fraternity, and law gains true force when validity is joined with moral value (Gauba, PDF pp.436-440).

Thinker	Position in this chapter
Alf Ross	FACT: Justice in law primarily means efficient, rule-bound and impartial administration according to existing law, not appeal to external moral standards (Gaubu, PDF pp.439-440).
Jeremy Bentham	FACT: Mainstream utilitarianism focuses on utility and felicific calculation, which Gauba treats as insufficiently attentive to justice as rightness (Gaubu, PDF pp.434-435).
J.S. Mill	ANALYSIS: Mill develops a utilitarian account of justice rather than abandoning utility. His liberty principle and account of justice show why Gauba's criticism should be directed at reduction of justice to aggregate advantage, not at every utilitarian treatment of rights and justice.
John Rawls	FACT: Rawls is noted as a critic of utilitarianism and as a thinker who tries to accommodate substantive concerns within a procedural framework (Gaubu, PDF pp.434-435, 443).
C.B. Macpherson	FACT: Macpherson is used against market-centered proceduralism because capitalist conditions can destroy ordinary people's creative freedom and thus the background fairness of competition (Gaubu, PDF pp.443-445).

7. Illustrative examples

- ANALYSIS: A law that is impartially applied but bars the poor from real access to courts shows why legal regularity alone may fall short of justice.
- FACT: Gauba's own contrast between open society and authoritarian order explains why allocative criteria become publicly contestable where arrangements can be criticized and revised; authoritarian institutions can still be judged unjust even when such contestation is suppressed (Gaubu, PDF pp.432-433).
- FACT: His use of liberty-equality-fraternity shows that equal formal treatment of worker and employer may still be unjust if the weaker party faces systematic exploitation (Gaubu, PDF pp.437-438, 441-442).
- ANALYSIS: A fair exam rulebook does not settle justice if only a narrow class can realistically prepare; this is a simple way to explain the gap between procedure and substance.
- FACT: Gauba's concluding argument says minimum needs such as subsistence, health care, education and work opportunities must be secured before desert-based differences are defended (Gaubu, PDF pp.444-445).

8. Comparison table

Legal, political and socio-economic justice

Dimension	What it focuses on	Why it matters
Legal justice	FACT: Fair administration of law and/or evaluation of whether law itself is just (Gaubu, PDF pp.439-440).	FACT: Without it, authority becomes arbitrary or morally empty.
Political justice	FACT: Democratic institutions, rule of law, constitutional government, free criticism and free association (Gaubu, PDF pp.440-441).	FACT: It ensures that power is not monopolized by privileged groups.
Socio-economic justice	FACT: Reordering economic and social relations so the lower and weaker sections gain dignity, protection and material opportunity (Gaubu, PDF pp.441-442).	FACT: It prevents economic disparity from hollowing out legal and political justice.

Justice as ordered liberty, equality and fraternity

Value	Justice-related role
Liberty	FACT: Justice requires liberty, but only as equal and regulated liberty so one person's freedom does not destroy another's (Gaubu, PDF pp.436-437).
Equality	FACT: Justice requires equality, but not merely formal non-discrimination where structural deprivation persists (Gaubu, PDF pp.437-438).
Fraternity	FACT: Justice further qualifies equality by demanding protection of weaker sections and fair sharing of social advantages as a matter of right, not charity (Gaubu, PDF pp.437-438).

SESSION 3 - Law, Legality and the Institutional Dimensions of Justice

9. UPSC traps and corrections

- WRONG: Justice is only whatever the law says. -> FACT: Gauba explicitly distinguishes legal validity from moral value and prefers a richer view where law must also answer to justice (Gauba, PDF p.440).
- WRONG: Social justice means only welfare charity. -> FACT: Gauba treats it as a structural and rights-based transformation of social conditions, especially for the oppressed and underprivileged (Gauba, PDF pp.438-442).
- WRONG: Procedural fairness settles everything. -> FACT: A fair-looking procedure can still operate inside severe inequality and leave outcomes unjust (Gauba, PDF pp.442-445).
- WRONG: Substantive justice can ignore due process. -> FACT: Gauba does not reject procedure; he rejects the claim that procedure alone is enough.
- WRONG: Liberty, equality and fraternity are separate slogans to be listed one after another. -> FACT: Barker's central point is that justice orders and reconciles them into one coherent scheme (Gauba, PDF pp.436-438).

10. Cross-links and boundaries

- FACT: Conceptual precondition: Political-Theory/basic/18_Liberty-Equality-and-Property.md and Political-Theory/advanced/18_Liberty-Equality-and-Property.md.
- FACT: Companion depth: Political-Theory/advanced/19_Justice-Concepts-and-Dimensions.md.
- ANALYSIS: The next justice topic in this module turns to rival theories of justice; this file should be mastered first because it supplies the baseline vocabulary of legal, political, socio-economic, procedural and substantive justice.
- ANALYSIS: For applied implementation, affirmative-action outcomes and welfare delivery, move in prose to the Social-Justice module rather than crowding this conceptual file with institutional detail.
- WRONG: Do not reduce this file to constitutional provisions alone. -> FACT: It is about the logic of justice that later informs constitutional and policy discussions.

11. Revision capsule / answer spine

- FACT: Gauba's chapter frames justice through fair allocation of benefits and burdens under scarcity in an open society; this is not an exhaustive condition for every justice claim (Gauba, PDF pp.432-433).
- FACT: Justice is a question of right/wrong, not merely useful/harmful calculation (Gauba, PDF pp.433-435).
- FACT: Justice is dynamic because social consciousness changes what counts as reasonable and humane (Gauba, PDF pp.435-436).
- FACT: Barker's synthesis: justice orders liberty, equality and fraternity into a coherent just arrangement (Gauba, PDF pp.436-438).
- FACT: Legal justice, political justice and socio-economic justice are distinct but continuous dimensions (Gauba, PDF pp.439-442).
- FACT: Procedural justice stresses fair rules; substantive justice stresses fair life-chances and outcomes for the underprivileged (Gauba, PDF pp.442-445).
- FACT: Minimum needs must be secured before desert-based differences are justified (Gauba, PDF pp.444-445).
- ANALYSIS: One-line answer spine: justice means fair rules plus fair social purpose, with liberty, equality and fraternity arranged as a just order rather than recited as separate ideals.

SESSION 4 - Aristotle, Distribution and Corrective Justice

12. Aristotle: distributive and corrective justice (named evidence unit)

Semantic table split - Aristotelian category

- **Aristotelian category:** ANALYSIS: Distributive justice
- **Core claim:** Allocates goods, honours and offices among members of a community in **geometric proportion** to a relevant standard of worth, so equals receive equal shares and unequals receive proportionally unequal shares.

- **Significance:** ANALYSIS: Gives the classical root of Gauba's own "fair allocation of benefits and burdens" framing (Section 3; PDF pp.432-433) and supplies vocabulary later theories use when debating merit, need, desert and contribution (Section 14).
- **Limit to name alongside it:** ANALYSIS: Aristotle shows that rival constitutions select rival standards of worth; modern need-based allocation should not be presented as one of Aristotle's own coordinate criteria.
- **Aristotelian category:** ANALYSIS: Corrective (rectificatory) justice
- **Core claim:** Restores **arithmetic equality** after a wrong in a specific bilateral transaction - voluntary (contract, exchange) or involuntary (theft, injury, fraud) - by correcting unjust gain and loss irrespective of the parties' relative merit or social standing.
- **Significance:** ANALYSIS: Supplies the conceptual root of ordinary legal/civil remedies (restitution, compensation) and shows justice operating independently of distributive proportion in transactional disputes.
- **Limit to name alongside it:** ANALYSIS: Corrective justice restores a transactional balance; it neither settles whether the prior distribution was fair nor operates as a synonym for retributive punishment or restorative justice.
- **Aristotelian category:** ANALYSIS: Relation between the two
- **Core claim:** Distributive justice governs how a community allocates shares in the first place; corrective justice governs how wrongs within specific transactions are put right afterward.
- **Significance:** ANALYSIS: A complete justice answer should show both are needed: distributive justice sets a fair starting allocation, corrective justice maintains fairness in transactions that follow.
- **Limit to name alongside it:** ANALYSIS: Do not conflate the two: a legal remedy that restores a transaction (corrective) does not itself fix an unfair underlying distribution (distributive) - this file's procedural/substantive distinction (Section 5) tracks a related but not identical line.

SESSION 5 - Procedural Liberalism, Background Inequality and Macpherson

13. Procedural-justice positions: Hayek, Friedman and Nozick (with Nozick's entitlement theory)

Semantic table split - Thinker

- **Thinker:** ANALYSIS: F.A. Hayek
- **Procedural-justice position:** Argues that "justice" or "injustice" properly describes individual conduct within known rules, not the unplanned pattern of outcomes produced by a spontaneous market order; since no single agent distributes that pattern, calling it socially just or unjust is, on his view, a category mistake.
- **Significance:** ANALYSIS: Gives a rule-centred objection to patterned distributive assessment, though Gauba groups it with other procedural positions more closely than the thinkers' doctrines warrant.
- **Limit to name alongside it:** WRONG: This does not mean Hayek is indifferent to rules themselves being general and impartial; his narrower target is deliberate moral assessment of an unplanned outcome pattern.
- **Thinker:** ANALYSIS: Milton Friedman
- **Procedural-justice position:** Treats voluntary market exchange under freedom of contract as itself the fair procedure; if an exchange is uncoerced, its outcome is procedurally legitimate regardless of the resulting inequality.
- **Significance:** ANALYSIS: Connects procedural justice directly to Section 4/Macpherson's target - the "fair race" analogy already used in Section 5.
- **Limit to name alongside it:** WRONG: Gauba's own Macpherson-based objection (Section 4, point 7; PDF pp.442-445) applies directly here: background inequality can make "voluntary" exchange substantively coercive for the weaker party, which Friedman's procedural criterion does not register.
- **Thinker:** FACT: Robert Nozick
- **Procedural-justice position:** Defends a historical, entitlement-based and unpatterned theory built on three principles: (i) **justice in acquisition**, constrained by a Lockean proviso that appropriation must not worsen others' position; (ii) **justice in transfer** through voluntary exchange, gift or bequest from a just holding; and (iii) **justice in rectification** where acquisition or transfer was unjust (companion detail:

Political-Theory/basic/18_Liberty-Equality-and-Property.md, Section 14). A resulting distribution is just only if its history satisfies these principles, irrespective of whether it matches a preferred pattern.

- **Significance:** FACT: Unlike Hayek's spontaneous-order argument or Friedman's voluntary-exchange emphasis, Nozick supplies a specifically historical entitlement test; Gauba's grouping should not erase those doctrinal differences.
- **Limit to name alongside it:** WRONG: "Nozick's theory blesses any current distribution because transfers were voluntary." -> FACT: Unjust acquisition or transfer requires rectification, though Nozick leaves the content and institutional execution of rectification substantially under-specified.

SESSION 6 - Nozick, Merit, Need and Desert

14. Distributive criteria: merit, need and desert

Semantic table split - Criterion

- **Criterion:** ANALYSIS: Merit
- **What it rewards:** Demonstrated ability, achievement or performance (e.g., examination rank, productivity).
- **Which theory leans on it:** ANALYSIS: Aristotle's proportional-allocation logic (Section 12) and liberal/procedural theories (Section 13) most readily use merit as the "relevant standard."
- **Caution:** ANALYSIS: Pure merit-based allocation can ignore unequal starting conditions that shape who is able to demonstrate merit in the first place - this is exactly the substantive-justice worry in Section 4/point 7.
- **Criterion:** ANALYSIS: Need
- **What it rewards:** Basic requirements for a decent life (subsistence, health, education) regardless of contribution or ability.
- **Which theory leans on it:** FACT: Gauba's own conclusion that minimum needs must be secured before desert-based differences are defended (PDF pp.444-445) is a need-first position.
- **Caution:** ANALYSIS: Gauba raises the incentive objection to an exclusively need-based scheme, but this is a contested claim rather than an established consequence of satisfying need.
- **Criterion:** ANALYSIS: Desert
- **What it rewards:** Moral entitlement earned through effort, sacrifice or voluntary contribution, distinct from raw ability (merit) or bare requirement (need).
- **Which theory leans on it:** ANALYSIS: Desert-based reasoning underlies everyday objections to "unearned" reward and grounds much popular resistance to pure need-based or pure luck-based allocation.
- **Caution:** ANALYSIS: Desert claims are hardest to verify impartially (how much of "effort" is itself shaped by unchosen circumstance), which is part of why Rawls (Section 15) treats desert with caution rather than making it foundational.
- **Criterion:** ANALYSIS: Exam use
- **What it rewards:** A strong answer names which criterion a given policy or theory is actually using, rather than treating "fairness" as one undifferentiated idea.
- **Which theory leans on it:**
- **Caution:** ANALYSIS: A distributive scheme may use progressive taxation to finance a need-based floor while allowing differentiated market returns above it; the tax instrument itself does not reward merit or desert.

SESSION 7 - Rawls, Sen and the Information of Justice

15. Rawls: procedural-substantive bridge (cross-link, not duplicated here)

- **FACT:** Gauba already notes Rawls as a critic of utilitarianism who tries to accommodate substantive concerns within a procedural framework (PDF pp.434-435, 443).
- **ANALYSIS:** The exam-relevant bridge point (stated here only in outline, not developed): Rawls uses a fair **procedure** - reasoning from an "original position" behind a "veil of ignorance" about one's own future place in society - to derive **two principles**. The first secures an equal scheme of basic liberties and has lexical priority. The second contains fair equality of opportunity, which precedes the difference principle permitting inequalities only when they benefit the least advantaged. The framework has important distributive consequences but should not be reduced to the label "substantively redistributive."
- **WRONG:** Do not duplicate the full original-position/veil-of-ignorance/difference-principle architecture in this file. -> **FACT:** Use the answer-complete
Political-Theory/basic/20_Diverse-Perspectives-on-Justice.md; its Advanced companion is optional enrichment. This file's job is only to flag the bridge so that Sections 5 and 14 are not read as forcing a strict procedural/substantive either-or.

16. Feminist, capability and recognition links (cautious cross-links)

- **ANALYSIS: Feminist link:** distributive-justice frameworks built around individual "holdings" or "positions" can overlook unpaid domestic/care labour and the gendered division of household work that shapes who can compete for merit-based rewards in the first place; the full theoretical treatment of this critique belongs to Political-Theory/basic/06_Feminism-Sex-and-Gender.md, and is named here only to flag its relevance to justice.
- **ANALYSIS: Capability and method link:** Sen uses capability as an **informational space** for judging the real freedoms people have, while his comparative, realization-focused method asks how remediable injustice in actual lives can be reduced through public reasoning. Nussbaum's capability approach is related but should not be collapsed into Sen's methodological account. This refines rather than replaces the procedural/substantive distinction and is developed further in Political-Theory/basic/20_Diverse-Perspectives-on-Justice.md and Economy-track material.
- **ANALYSIS: Recognition link:** Nancy Fraser analyses injustice through redistribution and recognition under the normative aim of parity of participation; her mature framework also adds representation. She should not be treated as the originator of every recognition theory. This file uses her framework only as a boundary marker for where distributive analysis requires status and political-representation analysis.
- **WRONG:** Do not treat feminist/capability/recognition perspectives as fully resolved inside this conceptual file. -> **FACT:** They are flagged as necessary companion lenses; full development belongs to the Feminism file and to Topic 20's diverse-perspectives treatment.

SESSION 8 - Recognition, Representation and Indian Applications

17. Objection and reply chains

- **Objection 1:** Aristotle's distributive/corrective distinction is too old and abstract to help with modern policy debates.

Reply: **ANALYSIS:** The distinction still does real analytical work - it separates "was the initial allocation fair" (distributive) from "was this specific wrong put right" (corrective) questions that modern debates (e.g., taxation/allocation policy vs civil/criminal remedy) continue to keep analytically separate (Section 12).

- **Objection 2:** Nozick's procedural entitlement theory, by focusing only on acquisition and transfer, effectively locks in whatever inequality currently exists.

Reply: **FACT:/ANALYSIS:** The rectification principle answers this directly (Section 13): any holding traceable to an unjust acquisition or transfer remains open to correction under Nozick's own framework; the theory is historical rather than status-quo-protecting, though critics reasonably note that establishing the *historical facts* needed to trigger rectification can be practically very difficult.

- **Objection 3:** A pure procedural-justice standard (Hayek/Friedman) is sufficient because it treats everyone by the same impartial rule.

Reply: FACT: Gauba's own Macpherson-based rejoinder (Section 4, point 7; PDF pp.442-445) shows that impartial rules operating inside deep background inequality can still leave the weaker party trapped, so procedural fairness needs a substantive check - precisely the reasoning that makes Rawls's procedural-substantive bridge (Section 15) attractive to many theorists.

18. Indian applied structure (cautious, non-Polity)

- ANALYSIS: Reservation policy is better framed through substantive equality, representation, anti-subordination and historical exclusion than as ordinary need-based welfare; economically defined measures require separate analysis. Progressive taxation can finance a need-based floor while leaving differentiated market returns intact, but the tax itself does not reward merit or desert.
- ANALYSIS: Judicial compensation and restitution remedies illustrate Aristotle's corrective-justice category (Section 12) applied to a modern legal-institutional setting, without reproducing case law or statutory detail here.
- WRONG: Do not extend this file into constitutional Article detail, reservation case law or current welfare-scheme specifics. -> FACT: Its role is to show how the classical/procedural/distributive-criteria apparatus (Sections 12-14) applies cautiously to Indian illustrations, leaving statutory and policy detail to Polity/Economy/Social-Justice tracks (already flagged in Section 10).

SESSION 9 - Objection-Reply Chains and Directive Control

19. Directive decoder and qualified-thesis templates

Directive word	What the examiner expects	How to open this topic's answer
Examine	Break justice into its dimensions/criteria and weigh them.	Open with legal/political/socio-economic dimensions (Section 8), then examine distributive criteria (Section 14).
Discuss	Rounded movement from definition to theory to critique to a reasoned position.	Define -> Aristotle (Section 12) -> procedural positions (Section 13) -> substantive correction -> qualified synthesis.
Critically analyse/evaluate	State thesis, run an explicit objection-reply, end with a qualified judgement.	Use Section 17's objection-reply chains directly; never end on a flat claim.
Elucidate	Explain with illustration; lighter critique load acceptable.	Define, illustrate with the Indian applied structure (Section 18), light critique only.
Distinguish	Use a direct comparison structure.	Use the procedural-vs-substantive table (Section 5) or the merit/need/desert table (Section 14).

- ANALYSIS: **10-mark qualified-thesis template:** "Justice is best read as [fair allocation under scarcity, Gauba PDF pp.432-433], but a purely procedural reading is incomplete because [named limit - Macpherson/Section 4 point 7], though [named counter-qualification, e.g., Hayek's pattern/rule distinction]."
- ANALYSIS: **15-mark qualified-thesis template:** as above, plus one named distributive criterion (merit/need/desert, Section 14) and one explicit objection-reply pair (Section 17) before the conclusion.
- ANALYSIS: **20-mark qualified-thesis template:** as above, plus Aristotle's distributive/corrective distinction (Section 12), the Rawls bridge flag (Section 15), and one cautious Indian illustration (Section 18), ending with a qualified synthesis.

20. Argument architecture: premises -> mechanism -> conclusion

Central debate used as the model: is procedural fairness sufficient for justice, or must substantive/distributive outcomes also be assessed?

- **P1:** FACT: Justice concerns fair allocation of benefits and burdens under scarcity in an open society (Gauba, PDF pp.432-433).
- **P2:** ANALYSIS: Procedural theories (Hayek's rule-only standard, Friedman's voluntary-exchange standard, Nozick's acquisition-transfer-rectification standard, Section 13) hold that a fair *process*, correctly followed, is what justice requires, independent of the resulting pattern.

- **P3: FACT:** Gauba's own Macpherson-based argument shows that impartial rules operating inside deep background inequality can still trap the weaker party in sub-human conditions, so an outcome can be procedurally clean yet substantively unjust (PDF pp.442-445).
- **Mechanism: ANALYSIS:** P1 defines justice by its allocative purpose; P2 supplies a test (fair process) for judging allocation; P3 shows that satisfying P2's test does not guarantee P1's purpose is actually achieved when background inequality is severe - so procedural fairness is a necessary but not sufficient condition for justice, and a further substantive/minimum-needs check (Gauba's own conclusion, PDF pp.444-445) is required.
- **Conclusion (qualified): ANALYSIS:** Justice needs both a fair procedure (to avoid arbitrary or force/fraud-based allocation, per Hayek/Friedman/Nozick's own internal limit of rectification) and a substantive floor secured before desert-based differences are defended (Gauba's own conclusion) - collapsing the debate into "procedure alone" or "outcome alone" understates how the two checks work together, and is the same reconciling logic that makes Rawls's bridge (Section 15) attractive.

SESSION 10 - Argument Architecture, Provenance and Final Recall

21. Executable answer architecture (10/15/20-mark blueprints)

ANALYSIS: Word/mark convention follows the standard PSIR-optional pattern (10 marks/~150 words, 15 marks/~200 words, 20 marks/~250 words); stated here as an analytical scaffold, not a book-sourced fact.

- **10-mark/~150 words:** Define justice (fair allocation under scarcity) -> name one classical/procedural position (Aristotle or Nozick) -> one named limit -> one-line qualified conclusion.
- **15-mark/~200 words:** Define -> Aristotle's distributive/corrective pair (Section 12) -> one procedural position and its limit (Section 13) -> one objection-reply pair (Section 17) -> qualified conclusion.
- **20-mark/~250 words:** Define -> Aristotle (Section 12) -> procedural positions (Section 13) -> merit/need/desert (Section 14) -> Rawls bridge flag (Section 15) -> one cautious Indian illustration (Section 18) -> qualified synthesis mirroring Section 20.

Quotation/proposition micro-method (five moves, for quotation- and statement-based stems)

ANALYSIS: Local implementation of Political-Theory/00_Master-Framework.md §5D, tuned to this file's justice vocabulary. Justice stems are very often propositions ("justice is giving each his due"; "justice delayed is justice denied"; "social justice is a mirage") rather than questions.

#	Move	What to do here
1	Identify the proposition and the concept	Restate the line as one testable claim, then name which dimension it invokes - legal, political, socio-economic (Section 8) - and which axis it is contesting: justice <i>according to law</i> vs law <i>according to justice</i> , or procedural vs substantive/distributive (Section 5).
2	Reconstruct the strongest argument for it	Build the best version as premises -> mechanism -> conclusion (Section 20). For a procedural line: P1 no one can know the "right" pattern of shares in advance; P2 impartial general rules are the only non-arbitrary allocation device available; C justice consists in rule-following, not in outcome-matching. Argue against the strongest form, not a caricature.
3	Test the counterargument and the conditions	Use Gauba's Macpherson-based point as the standing counter-set - impartial rules operating inside deep background inequality can leave the weaker party trapped, so an outcome can be procedurally clean yet substantively unjust (PDF pp.442-445) - then run the necessary-vs-sufficient check: procedural fairness is necessary but not sufficient. Name the conditions under which the proposition would hold (e.g. approximate equality of bargaining power).

#	Move	What to do here
4	Apply named evidence	Attach at least one named unit from Sections 12-16 (Aristotle's distributive vs corrective justice; Hayek's rule-only standard; Friedman's voluntary-exchange standard; Nozick's acquisition-transfer- rectification trio; the merit/need/desert criteria; the Rawls bridge cross-referenced to Political-Theory/basic/20_Diverse-Perspectives-on-Justice.md), and mark the cross-referenced ones as such.
5	Give a graded verdict	Land on "holds / holds only under stated conditions / fails as stated", mirroring Section 20's conclusion that justice needs both a fair procedure and a substantive floor. Never end on "procedure and outcome both matter" without saying how they are ordered.

- **WRONG: Never treat an unverified quotation as verbatim.** No sentence in this file is a direct quotation from Aristotle, Hayek, Friedman, Nozick, Macpherson or Gauba; every reconstruction is paraphrase. Do **not** invent a book, edition, year, page or line reference to authenticate an unfamiliar line supplied by a stem - including for classical sources, where translation wording varies widely between editions.

- **ANALYSIS: Three safe registers:** attribution and wording both verified -> name the work and quote exactly; attribution reliable but wording not -> "the position associated with X is that ..." (no quotation marks); attribution itself uncertain -> "the line is popularly attributed to X; its provenance is not independently verified here - taken on its own terms it claims ...", then argue the doctrine. Safe technical nomenclature usable as quoted vocabulary because it is standard terminology, not disputed quotation: "distributive justice", "corrective/rectificatory justice", "procedural justice", "entitlement theory", "justice in acquisition/transfer/rectification".

- **ANALYSIS: Architecture link:** at 10 marks run moves 1 -> 2 -> 5 with one named position and its limit; at 15 marks add move 3 as a full objection-reply (Section 17); at 20 marks run all five moves, adding the merit/need/desert criteria (Section 14) and one cautious Indian illustration (Section 18) before the graded verdict.

22. Sources, metadata and tags

- **FACT:** Main direct-book anchors used here: conceptual framing at PDF pp.432-438; legal/political/socio-economic justice at PDF pp.439-442; procedural/substantive debate at PDF pp.442-445.
- **FACT:** Companion file: Political-Theory/advanced/19_Justice-Concepts-and-Dimensions.md.
- **FACT:** Prior concept file: Political-Theory/basic/18_Liberty-Equality-and-Property.md.
- **FACT:** Module anchors: Political-Theory/README.md and Political-Theory/00_Master-Framework.md.
- **ANALYSIS:** Tag discipline in this file: direct conceptual claims and thinker attributions are marked **FACT**::; answer-use and explanatory syntheses are marked **ANALYSIS**::; misconceptions are marked **WRONG**::.
- **ANALYSIS:** No dated current anchor is needed because this file is conceptual; constitutional and policy references in the source are treated as book-period or generic conceptual illustrations unless separately verified elsewhere.

BASIC MCQS / REMEDIATION

MCQ 1

A commission is deciding how scarce public benefits and burdens should be allocated under publicly contestable criteria. Which statement frames the justice issue while preserving the scope limitation?

- A. Gauba introduces justice through the fair allocation of benefits and burdens, especially where valued goods are scarce and criteria are open to contestation; this is his chapter frame, not an exhaustive definition of every form of justice (Gauba, PDF pp.432-433).
- B. Demonstrated ability, achievement or performance (e.g., examination rank, productivity).
- C. Basic requirements for a decent life (subsistence, health, education) regardless of contribution or ability.
- D. Moral entitlement earned through effort, sacrifice or voluntary contribution, distinct from raw ability (merit) or bare requirement (need).

Answer: A

Explanation: The canonical Basic owner pairs **Justice** with **Gauba introduces justice through the fair allocation of benefits and burdens, especially where valued goods are scarce and criteria are open to contestation; this is his chapter frame, not an exhaustive definition of every form of justice (Gauba, PDF pp.432-433)**. The other options are valid source terms or statements, but belong to different pairings.

MCQ 2

A scholarship board must allocate limited places under criteria that citizens may publicly challenge and revise. Which concept best frames the issue without claiming that every justice question requires scarcity?

- A. Need
- B. Justice
- C. Alf Ross
- D. F.A. Hayek

Answer: B

Explanation: The canonical Basic owner pairs **Gauba introduces justice through the fair allocation of benefits and burdens, especially where valued goods are scarce and criteria are open to contestation; this is his chapter frame, not an exhaustive definition of every form of justice (Gauba, PDF pp.432-433)** with **Justice**. The other options are valid source terms or statements, but belong to different pairings.

MCQ 3

Citizens may criticise an inherited distribution and trigger institutional revision through public reasoning. Which statement explains the condition that makes this contest possible?

- A. Reordering social and economic relations so that exploitation is checked and the material and moral gains of social life reach weaker sections (Gauba, PDF pp.441-442).
- B. Justice is the integrating principle behind liberty, equality and fraternity, and law gains true force when validity is joined with moral value (Gauba, PDF pp.436-440).
- C. A society where existing arrangements may be criticized and revised through public reasoning, making the search for justice meaningful (Gauba, PDF p.433).
- D. Restores arithmetic equality after a wrong in a specific bilateral transaction - voluntary (contract, exchange) or involuntary (theft, injury, fraud) - by correcting unjust gain and loss irrespective of the parties' relative merit or social standing.

Answer: C

Explanation: The canonical Basic owner pairs **Open society** with **A society where existing arrangements may be criticized and revised through public reasoning, making the search for justice meaningful (Gauba, PDF p.433)**. The other options are valid source terms or statements, but belong to different pairings.

MCQ 4

Two states use the same allocation rule, but only one permits criticism, appeal and revision of the rule. Which setting does the second state illustrate?

- A. F.A. Hayek
- B. Desert
- C. Law according to justice
- D. Open society

Answer: D

Explanation: The canonical Basic owner pairs **A society where existing arrangements may be criticized and revised through public reasoning, making the search for justice meaningful (Gaub, PDF p.433)**. with **Open society**. The other options are valid source terms or statements, but belong to different pairings.

MCQ 5

An official is assessed only on consistent administration of existing general rules. Which statement identifies the relevant standard?

- A. This asks whether decisions are made by general rules, applied impartially and efficiently under existing law; Alf Ross represents this line (Gaub, PDF pp.439-440).
- B. Moral entitlement earned through effort, sacrifice or voluntary contribution, distinct from raw ability (merit) or bare requirement (need).
- C. Rawls is noted as a critic of utilitarianism and as a thinker who tries to accommodate substantive concerns within a procedural framework (Gaub, PDF pp.434-435, 443).
- D. Treats voluntary market exchange under freedom of contract as itself the fair procedure; if an exchange is uncoerced, its outcome is procedurally legitimate regardless of the resulting inequality.

Answer: A

Explanation: The canonical Basic owner pairs **Justice according to law** with **This asks whether decisions are made by general rules, applied impartially and efficiently under existing law; Alf Ross represents this line (Gaub, PDF pp.439-440)**. The other options are valid source terms or statements, but belong to different pairings.

MCQ 6

A judge applies a valid general rule consistently and without favour while leaving its moral merits undecided. Which approach is being used?

- A. Milton Friedman
- B. Justice according to law
- C. Recognition link
- D. Social justice

Answer: B

Explanation: The canonical Basic owner pairs **This asks whether decisions are made by general rules, applied impartially and efficiently under existing law; Alf Ross represents this line (Gaub, PDF pp.439-440)**. with **Justice according to law**. The other options are valid source terms or statements, but belong to different pairings.

MCQ 7

A court confronts a valid rule whose content is morally oppressive. Which statement identifies the question that validity alone cannot settle?

- A. Rawls is noted as a critic of utilitarianism and as a thinker who tries to accommodate substantive concerns within a procedural framework (Gaubu, PDF pp.434-435, 443).
- B. Treats voluntary market exchange under freedom of contract as itself the fair procedure; if an exchange is uncoerced, its outcome is procedurally legitimate regardless of the resulting inequality.
- C. This asks whether the law itself has moral value and conforms to what is right-in-itself; Ernest Barker represents this line (Gaubu, PDF p.440).
- D. Nancy Fraser analyses injustice through redistribution and recognition under the normative aim of parity of participation; her mature framework also adds representation. She should not be treated as the originator of every recognition theory. This file uses her framework only as a boundary marker for where distributive analysis requires status and political-representation analysis.

Answer: C

Explanation: The canonical Basic owner pairs **Law according to justice** with **This asks whether the law itself has moral value and conforms to what is right-in-itself; Ernest Barker represents this line (Gaubu, PDF p.440)**. The other options are valid source terms or statements, but belong to different pairings.

MCQ 8

A statute is administered flawlessly but entrenches an indefensible status hierarchy. Which approach asks whether the statute itself is just?

- A. Robert Nozick
- B. Justice
- C. Political justice
- D. Law according to justice

Answer: D

Explanation: The canonical Basic owner pairs **This asks whether the law itself has moral value and conforms to what is right-in-itself; Ernest Barker represents this line (Gaubu, PDF p.440)** with **Law according to justice**. The other options are valid source terms or statements, but belong to different pairings.

MCQ 9

A legal system is being tested both for impartial administration and for the justice of its rules. Which statement captures that two-sided dimension?

- A. Justice in the legal sphere may mean either fair administration according to existing law or testing law itself against standards of justice (Gaubu, PDF pp.439-440).
- B. In Gauba's modern usage, a progressive demand to transform oppressive social conditions and secure what is due to the underprivileged from organized social life (Gaubu, PDF pp.438-442).
- C. Macpherson is used against market-centered proceduralism because capitalist conditions can destroy ordinary people's creative freedom and thus the background fairness of competition (Gaubu, PDF pp.443-445).
- D. Allocates goods, honours and offices among members of a community in geometric proportion to a relevant standard of worth, so equals receive equal shares and unequals receive proportionally unequal shares.

Answer: A

Explanation: The canonical Basic owner pairs **Legal justice** with **Justice in the legal sphere may mean either fair administration according to existing law or testing law itself against standards of justice (Gaubu, PDF pp.439-440)**. The other options are valid source terms or statements, but belong to different pairings.

MCQ 10

A reform combines impartial adjudication with review of whether the governing law respects defensible values. Which dimension is engaged?

- A. Merit
- B. Legal justice
- C. Open society
- D. Ernest Barker

Answer: B

Explanation: The canonical Basic owner pairs **Justice in the legal sphere may mean either fair administration according to existing law or testing law itself against standards of justice (Gaubu, PDF pp.439-440)** with **Legal justice**. The other options are valid source terms or statements, but belong to different pairings.

MCQ 11

Formal voting exists but public power remains organised around privileged groups. Which statement supplies the correct institutional test?

- A. Allocates goods, honours and offices among members of a community in geometric proportion to a relevant standard of worth, so equals receive equal shares and unequals receive proportionally unequal shares.
- B. Demonstrated ability, achievement or performance (e.g., examination rank, productivity).
- C. Transformation of institutions, rights and procedures so that political power reflects the people rather than privileged groups (Gaubu, PDF pp.440-441).
- D. Restores arithmetic equality after a wrong in a specific bilateral transaction - voluntary (contract, exchange) or involuntary (theft, injury, fraud) - by correcting unjust gain and loss irrespective of the parties' relative merit or social standing.

Answer: C

Explanation: The canonical Basic owner pairs **Political justice** with **Transformation of institutions, rights and procedures so that political power reflects the people rather than privileged groups (Gaubu, PDF pp.440-441)**. The other options are valid source terms or statements, but belong to different pairings.

MCQ 12

Elections exist, but wealthy groups monopolise candidature and criticism of government is suppressed. Which dimension identifies the defect?

- A. Need
- B. Justice according to law
- C. Procedural justice
- D. Political justice

Answer: D

Explanation: The canonical Basic owner pairs **Transformation of institutions, rights and procedures so that political power reflects the people rather than privileged groups (Gaubu, PDF pp.440-441)**, with **Political justice**. The other options are valid source terms or statements, but belong to different pairings.

MCQ 13

A constitutional order protects equal status while exploitation and material exclusion persist. Which statement identifies the missing dimension?

- A. Reordering social and economic relations so that exploitation is checked and the material and moral gains of social life reach weaker sections (Gaubu, PDF pp.441-442).
- B. Restores arithmetic equality after a wrong in a specific bilateral transaction - voluntary (contract, exchange) or involuntary (theft, injury, fraud) - by correcting unjust gain and loss irrespective of the parties' relative merit or social standing.
- C. Basic requirements for a decent life (subsistence, health, education) regardless of contribution or ability.
- D. This asks whether decisions are made by general rules, applied impartially and efficiently under existing law; Alf Ross represents this line (Gaubu, PDF pp.439-440).

Answer: A

Explanation: The canonical Basic owner pairs **Socio-economic justice** with **Reordering social and economic relations so that exploitation is checked and the material and moral gains of social life reach weaker sections (Gaubu, PDF pp.441-442)**. The other options are valid source terms or statements, but belong to different pairings.

MCQ 14

Equal legal rights coexist with exploitative work, material deprivation and blocked access for weaker sections. Which dimension is missing?

- A. Desert
- B. Socio-economic justice
- C. Law according to justice
- D. Substantive / distributive justice

Answer: B

Explanation: The canonical Basic owner pairs **Reordering social and economic relations so that exploitation is checked and the material and moral gains of social life reach weaker sections (Gaubu, PDF pp.441-442)**, with **Socio-economic justice**. The other options are valid source terms or statements, but belong to different pairings.

MCQ 15

Everyone follows the same published competition rules. Which statement states what this proves, without claiming that the result is substantively fair?

- A. Moral entitlement earned through effort, sacrifice or voluntary contribution, distinct from raw ability (merit) or bare requirement (need).
- B. This asks whether the law itself has moral value and conforms to what is right-in-itself; Ernest Barker represents this line (Gaubu, PDF p.440).
- C. Justice secured through fair rules, impartial application and non-cheating, often modeled on market or competition rules (Gaubu, PDF pp.442-444).
- D. Treats voluntary market exchange under freedom of contract as itself the fair procedure; if an exchange is uncoerced, its outcome is procedurally legitimate regardless of the resulting inequality.

Answer: C

Explanation: The canonical Basic owner pairs **Procedural justice** with **Justice secured through fair rules, impartial application and non-cheating, often modeled on market or competition rules (Gaubu, PDF pp.442-444)**. The other options are valid source terms or statements, but belong to different pairings.

MCQ 16

A competition uses published rules, neutral judges and a ban on cheating but does not examine contestants' starting positions. Which approach is illustrated?

- A. Recognition link
- B. Legal justice
- C. Social justice
- D. Procedural justice

Answer: D

Explanation: The canonical Basic owner pairs **Justice secured through fair rules, impartial application and non-cheating, often modeled on market or competition rules (Gaubu, PDF pp.442-444)** with **Procedural justice**. The other options are valid source terms or statements, but belong to different pairings.

MCQ 17

A formally neutral scheme leaves poorer participants unable to use the opportunity. Which statement gives Gauba's outcome-sensitive concern with the necessary caveat?

- A. In this chapter Gauba treats substantive, social and distributive concerns together: justice is judged by whether actual arrangements improve the condition and life-chances of the poor and underprivileged, not by procedure alone. The terms are not universally synonymous across political theory (Gaubu, PDF pp.442-445).
- B. Treats voluntary market exchange under freedom of contract as itself the fair procedure; if an exchange is uncoerced, its outcome is procedurally legitimate regardless of the resulting inequality.
- C. Macpherson is used against market-centered proceduralism because capitalist conditions can destroy ordinary people's creative freedom and thus the background fairness of competition (Gaubu, PDF pp.443-445).
- D. Transformation of institutions, rights and procedures so that political power reflects the people rather than privileged groups (Gaubu, PDF pp.440-441).

Answer: A

Explanation: The canonical Basic owner pairs **Substantive / distributive justice** with **In this chapter Gauba treats substantive, social and distributive concerns together: justice is judged by whether actual arrangements improve the condition and life-chances of the poor and underprivileged, not by procedure alone. The terms are not universally synonymous across political theory (Gaubu, PDF pp.442-445)**. The other options are valid source terms or statements, but belong to different pairings.

MCQ 18

An examination is formally open, yet only an affluent minority can obtain the preparation needed to compete. Which Gauba-specific concern tests actual life-chances?

- A. Justice
- B. Substantive / distributive justice
- C. Political justice
- D. Plato

Answer: B

Explanation: The canonical Basic owner pairs **In this chapter Gauba treats substantive, social and distributive concerns together: justice is judged by whether actual arrangements improve the condition and life-chances of the poor and underprivileged, not by procedure alone. The terms are not universally synonymous across political theory (Gauba, PDF pp.442-445).** with **Substantive / distributive justice**. The other options are valid source terms or statements, but belong to different pairings.

MCQ 19

A movement demands transformation of an oppressive arrangement as a matter of right. Which statement distinguishes that claim from welfare charity?

- A. Macpherson is used against market-centered proceduralism because capitalist conditions can destroy ordinary people's creative freedom and thus the background fairness of competition (Gauba, PDF pp.443-445).
- B. Transformation of institutions, rights and procedures so that political power reflects the people rather than privileged groups (Gauba, PDF pp.440-441).
- C. In Gauba's modern usage, a progressive demand to transform oppressive social conditions and secure what is due to the underprivileged from organized social life (Gauba, PDF pp.438-442).
- D. Allocates goods, honours and offices among members of a community in geometric proportion to a relevant standard of worth, so equals receive equal shares and unequals receive proportionally unequal shares.

Answer: C

Explanation: The canonical Basic owner pairs **Social justice** with **In Gauba's modern usage, a progressive demand to transform oppressive social conditions and secure what is due to the underprivileged from organized social life (Gauba, PDF pp.438-442).** The other options are valid source terms or statements, but belong to different pairings.

MCQ 20

A disadvantaged group demands structural reform as its due from organised social life rather than discretionary charity. Which concept applies?

- A. Open society
- B. Socio-economic justice
- C. Ernest Barker
- D. Social justice

Answer: D

Explanation: The canonical Basic owner pairs **In Gauba's modern usage, a progressive demand to transform oppressive social conditions and secure what is due to the underprivileged from organized social life (Gauba, PDF pp.438-442).** with **Social justice**. The other options are valid source terms or statements, but belong to different pairings.

MCQ 21

A theory locates justice in coordinated functions under reason rather than in an external distribution. Which statement reconstructs that position accurately?

- A. Justice in the traditional sense means each part of the soul and each class in the state doing its proper function under rule of reason; Gauba treats this as a classic conservative/functional view (Gauba, PDF pp.438-439).
- B. Allocates goods, honours and offices among members of a community in geometric proportion to a relevant standard of worth, so equals receive equal shares and unequals receive proportionally unequal shares.
- C. Demonstrated ability, achievement or performance (e.g., examination rank, productivity).
- D. A society where existing arrangements may be criticized and revised through public reasoning, making the search for justice meaningful (Gauba, PDF p.433).

Answer: A

Explanation: The canonical Basic owner pairs **Plato** with **Justice in the traditional sense means each part of the soul and each class in the state doing its proper function under rule of reason; Gauba treats this as a classic conservative/functional view (Gauba, PDF pp.438-439).** The other options are valid source terms or statements, but belong to different pairings.

MCQ 22

A city is called just when rulers, auxiliaries and producers perform differentiated functions under reason. Which thinker supplies this model?

- A. Justice according to law
- B. Plato
- C. Procedural justice
- D. F.A. Hayek

Answer: B

Explanation: The canonical Basic owner pairs **Justice in the traditional sense means each part of the soul and each class in the state doing its proper function under rule of reason; Gauba treats this as a classic conservative/functional view (Gauba, PDF pp.438-439).** with **Plato**. The other options are valid source terms or statements, but belong to different pairings.

MCQ 23

An examiner asks how justice integrates three political ideals and gives law moral value. Which statement supplies the correct answer?

- A. Restores arithmetic equality after a wrong in a specific bilateral transaction - voluntary (contract, exchange) or involuntary (theft, injury, fraud) - by correcting unjust gain and loss irrespective of the parties' relative merit or social standing.
- B. Basic requirements for a decent life (subsistence, health, education) regardless of contribution or ability.
- C. Justice is the integrating principle behind liberty, equality and fraternity, and law gains true force when validity is joined with moral value (Gaubu, PDF pp.436-440).
- D. This asks whether decisions are made by general rules, applied impartially and efficiently under existing law; Alf Ross represents this line (Gaubu, PDF pp.439-440).

Answer: C

Explanation: The canonical Basic owner pairs **Ernest Barker** with **Justice is the integrating principle behind liberty, equality and fraternity, and law gains true force when validity is joined with moral value (Gaubu, PDF pp.436-440)**. The other options are valid source terms or statements, but belong to different pairings.

MCQ 24

An answer treats justice as the principle ordering liberty, equality and fraternity and also tests law's moral value. Which thinker anchors it?

- A. Law according to justice
- B. Substantive / distributive justice
- C. John Rawls
- D. Ernest Barker

Answer: D

Explanation: The canonical Basic owner pairs **Justice is the integrating principle behind liberty, equality and fraternity, and law gains true force when validity is joined with moral value (Gaubu, PDF pp.436-440)** with **Ernest Barker**. The other options are valid source terms or statements, but belong to different pairings.

MCQ 25

A lawyer refuses extra-legal moral judgment and asks whether rules were general and impartially applied. Which statement matches that position?

- A. Justice in law primarily means efficient, rule-bound and impartial administration according to existing law, not appeal to external moral standards (Gaubu, PDF pp.439-440).
- B. Argues that "justice" or "injustice" properly describes individual conduct within known rules, not the unplanned pattern of outcomes produced by a spontaneous market order; since no single agent distributes that pattern, calling it socially just or unjust is, on his view, a category mistake.
- C. Moral entitlement earned through effort, sacrifice or voluntary contribution, distinct from raw ability (merit) or bare requirement (need).
- D. This asks whether the law itself has moral value and conforms to what is right-in-itself; Ernest Barker represents this line (Gaubu, PDF p.440).

Answer: A

Explanation: The canonical Basic owner pairs **Alf Ross** with **Justice in law primarily means efficient, rule-bound and impartial administration according to existing law, not appeal to external moral standards (Gaubu, PDF pp.439-440)**. The other options are valid source terms or statements, but belong to different pairings.

MCQ 26

An administrator defines legal justice through general rules correctly and impartially applied, without invoking an external moral absolute. Who is being followed?

- A. Legal justice
- B. Alf Ross
- C. Social justice
- D. C.B. Macpherson

Answer: B

Explanation: The canonical Basic owner pairs **Justice in law primarily means efficient, rule-bound and impartial administration according to existing law, not appeal to external moral standards (Gaub, PDF pp.439-440).** with **Alf Ross**. The other options are valid source terms or statements, but belong to different pairings.

MCQ 27

A student incorrectly lists liberty, opportunity and difference as three independent principles. Which statement repairs the ordering?

- A. Treats voluntary market exchange under freedom of contract as itself the fair procedure; if an exchange is uncoerced, its outcome is procedurally legitimate regardless of the resulting inequality.
- B. Nancy Fraser analyses injustice through redistribution and recognition under the normative aim of parity of participation; her mature framework also adds representation. She should not be treated as the originator of every recognition theory. This file uses her framework only as a boundary marker for where distributive analysis requires status and political-representation analysis.
- C. Rawls is noted as a critic of utilitarianism and as a thinker who tries to accommodate substantive concerns within a procedural framework (Gaub, PDF pp.434-435, 443).
- D. Justice in the legal sphere may mean either fair administration according to existing law or testing law itself against standards of justice (Gaub, PDF pp.439-440).

Answer: C

Explanation: The canonical Basic owner pairs **John Rawls** with **Rawls is noted as a critic of utilitarianism and as a thinker who tries to accommodate substantive concerns within a procedural framework (Gaub, PDF pp.434-435, 443).** The other options are valid source terms or statements, but belong to different pairings.

MCQ 28

Parties choose principles without knowing their social position and give equal basic liberties priority over the second principle. Which thinker is involved?

- A. Political justice
- B. Plato
- C. Distributive justice
- D. John Rawls

Answer: D

Explanation: The canonical Basic owner pairs **Rawls is noted as a critic of utilitarianism and as a thinker who tries to accommodate substantive concerns within a procedural framework (Gaub, PDF pp.434-435, 443).** with **John Rawls**. The other options are valid source terms or statements, but belong to different pairings.

MCQ 29

A market exchange is formally voluntary but takes place under severe dependence. Which statement explains why the background may defeat fairness?

- A. Macpherson is used against market-centered proceduralism because capitalist conditions can destroy ordinary people's creative freedom and thus the background fairness of competition (Gaub, PDF pp.443-445).
- B. Gaub introduces justice through the fair allocation of benefits and burdens, especially where valued goods are scarce and criteria are open to contestation; this is his chapter frame, not an exhaustive definition of every form of justice (Gaub, PDF pp.432-433).
- C. Transformation of institutions, rights and procedures so that political power reflects the people rather than privileged groups (Gaub, PDF pp.440-441).
- D. Justice in the traditional sense means each part of the soul and each class in the state doing its proper function under rule of reason; Gaub treats this as a classic conservative/functional view (Gaub, PDF pp.438-439).

Answer: A

Explanation: The canonical Basic owner pairs **C.B. Macpherson** with **Macpherson is used against market-centered proceduralism because capitalist conditions can destroy ordinary people's creative freedom and thus the background fairness of competition (Gaub, PDF pp.443-445).** The other options are valid source terms or statements, but belong to different pairings.

MCQ 30

A formally voluntary labour contract leaves the worker without realistic alternatives and weakens creative self-development. Which critic best explains the background defect?

- A. Socio-economic justice
- B. C.B. Macpherson
- C. Ernest Barker
- D. Corrective (rectificatory) justice

Answer: B

Explanation: The canonical Basic owner pairs **Macpherson is used against market-centered proceduralism because capitalist conditions can destroy ordinary people's creative freedom and thus the background fairness of competition (Gaub, PDF pp.443-445).** with **C.B. Macpherson**. The other options are valid source terms or statements, but belong to different pairings.

MCQ 31

A community must allocate common offices before any transactional wrong occurs. Which statement gives the correct classical rule?

- A. Demonstrated ability, achievement or performance (e.g., examination rank, productivity).
- B. Reordering social and economic relations so that exploitation is checked and the material and moral gains of social life reach weaker sections (Gaub, PDF pp.441-442).
- C. Allocates goods, honours and offices among members of a community in geometric proportion to a relevant standard of worth, so equals receive equal shares and unequals receive proportionally unequal shares.
- D. Basic requirements for a decent life (subsistence, health, education) regardless of contribution or ability.

Answer: C

Explanation: The canonical Basic owner pairs **Distributive justice** with **Allocates goods, honours and offices among members of a community in geometric proportion to a relevant standard of worth, so equals receive equal shares and unequals receive proportionally unequal shares**. The other options are valid source terms or statements, but belong to different pairings.

MCQ 32

A polis assigns honours and offices in geometric proportion to a publicly relevant standard of worth. Which Aristotelian category applies?

- A. Procedural justice
- B. Alf Ross
- C. F.A. Hayek
- D. Distributive justice

Answer: D

Explanation: The canonical Basic owner pairs **Allocates goods, honours and offices among members of a community in geometric proportion to a relevant standard of worth, so equals receive equal shares and unequals receive proportionally unequal shares**. with **Distributive justice**. The other options are valid source terms or statements, but belong to different pairings.

MCQ 33

A bilateral transaction creates an unjust gain and corresponding loss. Which statement identifies the remedy without turning it into punishment?

- A. Restores arithmetic equality after a wrong in a specific bilateral transaction - voluntary (contract, exchange) or involuntary (theft, injury, fraud) - by correcting unjust gain and loss irrespective of the parties' relative merit or social standing.
- B. Basic requirements for a decent life (subsistence, health, education) regardless of contribution or ability.
- C. This asks whether decisions are made by general rules, applied impartially and efficiently under existing law; Alf Ross represents this line (Gaub, PDF pp.439-440).
- D. Moral entitlement earned through effort, sacrifice or voluntary contribution, distinct from raw ability (merit) or bare requirement (need).

Answer: A

Explanation: The canonical Basic owner pairs **Corrective (rectificatory) justice** with **Restores arithmetic equality after a wrong in a specific bilateral transaction - voluntary (contract, exchange) or involuntary (theft, injury, fraud) - by correcting unjust gain and loss irrespective of the parties' relative merit or social standing**. The other options are valid source terms or statements, but belong to different pairings.

MCQ 34

A court removes one party's unjust transactional gain and restores the other's loss without ranking their social merit. Which Aristotelian category applies?

- A. Substantive / distributive justice
- B. Corrective (rectificatory) justice
- C. John Rawls
- D. Milton Friedman

Answer: B

Explanation: The canonical Basic owner pairs **Restores arithmetic equality after a wrong in a specific bilateral transaction - voluntary (contract, exchange) or involuntary (theft, injury, fraud) - by correcting unjust gain and loss irrespective of the parties' relative merit or social standing**. with **Corrective (rectificatory) justice**. The other options are valid source terms or statements, but belong to different pairings.

MCQ 35

A decentralised market outcome has no single distributor. Which statement gives the rule-centred objection to judging its pattern?

- A. Moral entitlement earned through effort, sacrifice or voluntary contribution, distinct from raw ability (merit) or bare requirement (need).
- B. This asks whether the law itself has moral value and conforms to what is right-in-itself; Ernest Barker represents this line (Gauba, PDF p.440).
- C. Argues that "justice" or "injustice" properly describes individual conduct within known rules, not the unplanned pattern of outcomes produced by a spontaneous market order; since no single agent distributes that pattern, calling it socially just or unjust is, on his view, a category mistake.
- D. In this chapter Gauba treats substantive, social and distributive concerns together: justice is judged by whether actual arrangements improve the condition and life-chances of the poor and underprivileged, not by procedure alone. The terms are not universally synonymous across political theory (Gauba, PDF pp.442-445).

Answer: C

Explanation: The canonical Basic owner pairs **F.A. Hayek** with **Argues that "justice" or "injustice" properly describes individual conduct within known rules, not the unplanned pattern of outcomes produced by a spontaneous market order; since no single agent distributes that pattern, calling it socially just or unjust is, on his view, a category mistake**. The other options are valid source terms or statements, but belong to different pairings.

MCQ 36

No central agent designed a market's final pattern, so a theorist denies that the spontaneous pattern itself can be called socially just or unjust. Who argues this?

- A. Social justice
- B. C.B. Macpherson
- C. Justice
- D. F.A. Hayek

Answer: D

Explanation: The canonical Basic owner pairs **Argues that "justice" or "injustice" properly describes individual conduct within known rules, not the unplanned pattern of outcomes produced by a spontaneous market order; since no single agent distributes that pattern, calling it socially just or unjust is, on his view, a category mistake**. with **F.A. Hayek**. The other options are valid source terms or statements, but belong to different pairings.

MCQ 37

An exchange is defended because it is voluntary and uncoerced. Which statement reconstructs the procedural claim being made?

- A. Treats voluntary market exchange under freedom of contract as itself the fair procedure; if an exchange is uncoerced, its outcome is procedurally legitimate regardless of the resulting inequality.
- B. Nancy Fraser analyses injustice through redistribution and recognition under the normative aim of parity of participation; her mature framework also adds representation. She should not be treated as the originator of every recognition theory. This file uses her framework only as a boundary marker for where distributive analysis requires status and political-representation analysis.
- C. Justice in the legal sphere may mean either fair administration according to existing law or testing law itself against standards of justice (Gaubu, PDF pp.439-440).
- D. In Gauba's modern usage, a progressive demand to transform oppressive social conditions and secure what is due to the underprivileged from organized social life (Gaubu, PDF pp.438-442).

Answer: A

Explanation: The canonical Basic owner pairs **Milton Friedman** with **Treats voluntary market exchange under freedom of contract as itself the fair procedure; if an exchange is uncoerced, its outcome is procedurally legitimate regardless of the resulting inequality**. The other options are valid source terms or statements, but belong to different pairings.

MCQ 38

A theorist treats an uncoerced exchange under freedom of contract as procedurally legitimate despite the inequality it produces. Who is represented?

- A. Plato
- B. Milton Friedman
- C. Distributive justice
- D. Merit

Answer: B

Explanation: The canonical Basic owner pairs **Treats voluntary market exchange under freedom of contract as itself the fair procedure; if an exchange is uncoerced, its outcome is procedurally legitimate regardless of the resulting inequality**. with **Milton Friedman**. The other options are valid source terms or statements, but belong to different pairings.

MCQ 39

A present holding has a voluntary recent transfer but a disputed history. Which statement identifies all parts of the entitlement test?

- A. Gauba introduces justice through the fair allocation of benefits and burdens, especially where valued goods are scarce and criteria are open to contestation; this is his chapter frame, not an exhaustive definition of every form of justice (Gauba, PDF pp.432-433).
- B. Transformation of institutions, rights and procedures so that political power reflects the people rather than privileged groups (Gauba, PDF pp.440-441).
- C. Defends a historical, entitlement-based and unpatterned theory built on three principles: (i) justice in acquisition, constrained by a Lockean proviso that appropriation must not worsen others' position; (ii) justice in transfer through voluntary exchange, gift or bequest from a just holding; and (iii) justice in rectification where acquisition or transfer was unjust .
- D. Justice in the traditional sense means each part of the soul and each class in the state doing its proper function under rule of reason; Gauba treats this as a classic conservative/functional view (Gauba, PDF pp.438-439).

Answer: C

Explanation: The canonical Basic owner pairs **Robert Nozick** with **Defends a historical, entitlement-based and unpatterned theory built on three principles: (i) justice in acquisition, constrained by a Lockean proviso that appropriation must not worsen others' position; (ii) justice in transfer through voluntary exchange, gift or bequest from a just holding; and (iii) justice in rectification where acquisition or transfer was unjust .** The other options are valid source terms or statements, but belong to different pairings.

MCQ 40

A claimant traces a holding through acquisition and voluntary transfer but must also answer a proviso and past injustice. Which theorist supplies the test?

- A. Ernest Barker
- B. Corrective (rectificatory) justice
- C. Need
- D. Robert Nozick

Answer: D

Explanation: The canonical Basic owner pairs **Defends a historical, entitlement-based and unpatterned theory built on three principles: (i) justice in acquisition, constrained by a Lockean proviso that appropriation must not worsen others' position; (ii) justice in transfer through voluntary exchange, gift or bequest from a just holding; and (iii) justice in rectification where acquisition or transfer was unjust .** with **Robert Nozick**. The other options are valid source terms or statements, but belong to different pairings.

MCQ 41

A selector wants to reward demonstrated ability or performance. Which statement identifies the distributive criterion?

- A. Demonstrated ability, achievement or performance (e.g., examination rank, productivity).
- B. A society where existing arrangements may be criticized and revised through public reasoning, making the search for justice meaningful (Gaubu, PDF p.433).
- C. Reordering social and economic relations so that exploitation is checked and the material and moral gains of social life reach weaker sections (Gaubu, PDF pp.441-442).
- D. Justice is the integrating principle behind liberty, equality and fraternity, and law gains true force when validity is joined with moral value (Gaubu, PDF pp.436-440).

Answer: A

Explanation: The canonical Basic owner pairs **Merit** with **Demonstrated ability, achievement or performance (e.g., examination rank, productivity)**. The other options are valid source terms or statements, but belong to different pairings.

MCQ 42

A public honour is assigned for demonstrated achievement rather than need or sacrifice. Which distributive criterion is being used?

- A. Alf Ross
- B. Merit
- C. F.A. Hayek
- D. Law according to justice

Answer: B

Explanation: The canonical Basic owner pairs **Demonstrated ability, achievement or performance (e.g., examination rank, productivity)** with **Merit**. The other options are valid source terms or statements, but belong to different pairings.

MCQ 43

A welfare authority first secures subsistence, health and education. Which statement identifies the criterion without accepting the incentive objection as settled?

- A. This asks whether decisions are made by general rules, applied impartially and efficiently under existing law; Alf Ross represents this line (Gaubu, PDF pp.439-440).
- B. Justice secured through fair rules, impartial application and non-cheating, often modeled on market or competition rules (Gaubu, PDF pp.442-444).
- C. Basic requirements for a decent life (subsistence, health, education) regardless of contribution or ability.
- D. Justice in law primarily means efficient, rule-bound and impartial administration according to existing law, not appeal to external moral standards (Gaubu, PDF pp.439-440).

Answer: C

Explanation: The canonical Basic owner pairs **Need** with **Basic requirements for a decent life (subsistence, health, education) regardless of contribution or ability**. The other options are valid source terms or statements, but belong to different pairings.

MCQ 44

Health support is prioritised by the requirements of a decent life rather than productivity or earned contribution. Which criterion applies?

- A. John Rawls
- B. Milton Friedman
- C. Recognition link
- D. Need

Answer: D

Explanation: The canonical Basic owner pairs **Basic requirements for a decent life (subsistence, health, education) regardless of contribution or ability** with **Need**. The other options are valid source terms or statements, but belong to different pairings.

MCQ 45

A reward is defended as morally earned through effort or sacrifice. Which statement distinguishes this from raw ability and bare requirement?

- A. Moral entitlement earned through effort, sacrifice or voluntary contribution, distinct from raw ability (merit) or bare requirement (need).
- B. This asks whether the law itself has moral value and conforms to what is right-in-itself; Ernest Barker represents this line (Gaubu, PDF p.440).
- C. In this chapter Gauba treats substantive, social and distributive concerns together: justice is judged by whether actual arrangements improve the condition and life-chances of the poor and underprivileged, not by procedure alone. The terms are not universally synonymous across political theory (Gaubu, PDF pp.442-445).
- D. Rawls is noted as a critic of utilitarianism and as a thinker who tries to accommodate substantive concerns within a procedural framework (Gaubu, PDF pp.434-435, 443).

Answer: A

Explanation: The canonical Basic owner pairs **Desert** with **Moral entitlement earned through effort, sacrifice or voluntary contribution, distinct from raw ability (merit) or bare requirement (need)**. The other options are valid source terms or statements, but belong to different pairings.

MCQ 46

Two equally talented persons receive different rewards because one made a greater voluntary effort and sacrifice. Which criterion is invoked?

- A. C.B. Macpherson
- B. Desert
- C. Robert Nozick
- D. Justice

Answer: B

Explanation: The canonical Basic owner pairs **Moral entitlement earned through effort, sacrifice or voluntary contribution, distinct from raw ability (merit) or bare requirement (need)** with **Desert**. The other options are valid source terms or statements, but belong to different pairings.

MCQ 47

Material transfers improve while status injury and political exclusion continue. Which statement identifies the companion justice lens?

- A. Justice in the legal sphere may mean either fair administration according to existing law or testing law itself against standards of justice (Gaubu, PDF pp.439-440).
- B. In Gauba's modern usage, a progressive demand to transform oppressive social conditions and secure what is due to the underprivileged from organized social life (Gaubu, PDF pp.438-442).
- C. Nancy Fraser analyses injustice through redistribution and recognition under the normative aim of parity of participation; her mature framework also adds representation. She should not be treated as the originator of every recognition theory. This file uses her framework only as a boundary marker for where distributive analysis requires status and political-representation analysis.
- D. Macpherson is used against market-centered proceduralism because capitalist conditions can destroy ordinary people's creative freedom and thus the background fairness of competition (Gaubu, PDF pp.443-445).

Answer: C

Explanation: The canonical Basic owner pairs **Recognition link** with **Nancy Fraser analyses injustice through redistribution and recognition under the normative aim of parity of participation; her mature framework also adds representation. She should not be treated as the originator of every recognition theory. This file uses her framework only as a boundary marker for where distributive analysis requires status and political-representation analysis.** The other options are valid source terms or statements, but belong to different pairings.

MCQ 48

A policy changes income transfers but leaves stigma, status subordination and exclusion from rule-making untouched. Which Fraser-related dimension remains unresolved?

- A. Distributive justice
- B. Merit
- C. Open society
- D. Recognition link

Answer: D

Explanation: The canonical Basic owner pairs **Nancy Fraser analyses injustice through redistribution and recognition under the normative aim of parity of participation; her mature framework also adds representation. She should not be treated as the originator of every recognition theory. This file uses her framework only as a boundary marker for where distributive analysis requires status and political-representation analysis.** with **Recognition link**. The other options are valid source terms or statements, but belong to different pairings.

PYQS AND ANSWER PRACTICE

Cross-application ownership note: These are verified Philosophy Optional questions whose primary owners are Social and Political Ideals, Crime and Punishment, Development and Social Progress, Gender Discrimination, Caste Discrimination: Gandhi and Ambedkar. They are not re-routed to Political Theory; they are included because this topic provides a directly usable supporting framework.

Primary owner: Philosophy Paper II - Social and Political Ideals.

Solved PYQ 1 - 2019 Q1(a), 10 marks

Question: How far do you think John Rawls is continuing with Plato's concept of justice?

Model solution

Thesis. Rawls continues Plato only in a broad architectonic sense -- justice as the virtue that structures a well-ordered whole -- and breaks with him radically on method, citizenship and equality. State the criterion of "continuity" first.

- **Continuity.** For Plato, justice is right-order: each part of soul and city performs its own function in harmony. For Rawls, justice is the first virtue of the basic structure -- fair terms of cooperation among free and equal persons. Both make justice the ORDERING virtue of the social whole, not one desire among others.

- **Break 1 -- method.** Plato reaches justice through the metaphysics of the Forms and functional differentiation; Rawls through a hypothetical device, the original position under a veil of ignorance -- a device of representation, not a cosmology.

- **Break 2 -- equality and citizenship.** Plato's order is a fixed hierarchy of natural kinds; Rawls builds in equal basic liberties and fair equality of opportunity for equal citizens, explicitly rejecting caste-like closure.

Verdict. The continuity is thin (justice as the structure of a good society); the discontinuity is deep (democratic-egalitarian method against fixed hierarchy). Rawls inherits Plato's QUESTION, not his ANSWER.

MEMORY: Why this earns marks -- it names the axis of continuity before judging, and separates a shared question from opposed answers instead of forcing a single verdict.

Primary owner: Philosophy Paper II - Social and Political Ideals.

Solved PYQ 2 - 2021 Q1(a), 10 marks

Question: Discuss critically the distributive theory of justice as propounded by R. Nozick.

Model solution

Thesis. Nozick's is a HISTORICAL (entitlement) theory, not a distributive one in the patterned sense: a distribution is just if it arose through just steps, whatever its final shape. Powerful as a warning, it is incomplete on its own premises.

- **Doctrine.** Justice in holdings has three principles -- justice in ACQUISITION (how unowned things are first justly held), justice in TRANSFER (voluntary exchange and gift) and justice in RECTIFICATION (correcting past injustice). There is no required end-state pattern.

- **Historical vs patterned.** Patterned principles (equality, need, merit) judge the shape of the distribution; historical principles judge the PROCESS. The Wilt Chamberlain argument shows that if people freely pay to watch him, the resulting inequality is just, and maintaining any fixed pattern would require continuous interference with voluntary transfers.

- **Critique.** The acquisition and rectification principles are the weakest links: both need an independent criterion, and real starting distributions are tainted by conquest, coercion and background injustice, so "voluntariness" is rarely clean.

Verdict. Nozick's side-constraint, self-ownership warning against overreaching redistribution is a permanent contribution; but because his own foundational principles are under-specified, entitlement theory cannot bypass the problem of unjust starting points.

MEMORY: Why this earns marks -- it fixes the historical/patterned distinction, uses Wilt Chamberlain as argument (not decoration), and lands the critique on acquisition/rectification.

Primary owner: Philosophy Paper II - Social and Political Ideals.

Solved PYQ 3 - 2021 Q2(a), 20 marks

Question: Discuss whether Amartya Sen's idea of justice is an improvement upon Rawls's theory of justice.

Model solution

Thesis. Whether Sen improves on Rawls is CRITERION-RELATIVE: judged by attention to realised freedom and remediable injustice Sen improves on Rawls; judged by the need for determinate institutional principles Rawls retains the advantage. Name the test before applying it.

- **Rawls in brief.** A just basic structure chosen behind the veil of ignorance: equal basic liberties, fair equality of opportunity and the difference principle. Its focus is ideal, transcendental and institution-centred.
- **Sen's reorientation.** Sen contrasts NITI (correctness of rules and institutions) with NYAYA (justice realised in actual lives). A society may have fine rules yet produce grave injustice, so we should COMPARE feasible social states and remove manifest injustice rather than seek one perfectly just structure; the metric is CAPABILITIES, refined through PUBLIC REASONING.
- **The improvement, assessed.** By the criterion of realised freedom, Sen improves on Rawls -- primary goods ignore the diversity of conversion into real freedom, and transcendental design can neglect how people actually fare. But by the criterion of institutional determinacy, comparative ranking without an ideal benchmark can under-determine choice among rival improvements.
- **Rawlsian reply.** Institutions remain indispensable preconditions of justice; comparison still presupposes standards the ideal theory helps supply.

Verdict. Sen improves on Rawls in ORIENTATION (from arrangements to lives, from resources to capabilities), but does not simply supersede him; "improvement" holds only on a stated criterion, and both are needed.

MEMORY: Why this earns marks -- it states the criterion of improvement first, uses niti/nyaya and capabilities as argument, concedes what Rawls still does better, and gives a criterion-relative verdict.

Primary owner: Philosophy Paper II - Social and Political Ideals.

Solved PYQ 4 - 2023 Q1(a), 10 marks

Question: What is meant by justice as fairness? Explain Rawls' theory of justice.

Model solution

Thesis. "Justice as fairness" means that the principles of justice are those that free and equal persons would choose under fair conditions; Rawls builds those conditions into the original position and derives two lexically ordered principles.

- **The device.** In the ORIGINAL POSITION, parties choose principles for the basic structure behind a VEIL OF IGNORANCE -- not knowing their class, sex, talents, religion or conception of the good. Ignorance of arbitrary advantage makes the choice fair; it is a device of representation, not a historical contract.

- **The two principles.** (1) Each has an equal claim to a fully adequate scheme of equal BASIC LIBERTIES. (2) Social and economic inequalities must satisfy (a) FAIR equality of opportunity and (b) the DIFFERENCE PRINCIPLE -- they may stand only if they benefit the LEAST ADVANTAGED.

- **Priority and justification.** Liberty is LEXICALLY prior (never traded for economic gain); fair opportunity precedes the difference principle. Justification proceeds by REFLECTIVE EQUILIBRIUM -- mutual adjustment of principles and considered judgments.

Verdict. Justice as fairness is a deontological liberal egalitarianism: liberty is basic, and inequality is tolerated only under fair opportunity and benefit to the least advantaged.

MEMORY: Why this earns marks -- it defines fairness through the fair choice situation, states the principles with their PRIORITY, and adds reflective equilibrium rather than listing slogans.

Primary owner: Philosophy Paper II - Social and Political Ideals.

Solved PYQ 5 - 2024 Q1(a), 10 marks

Question: Briefly discuss Plato's concept of justice.

Model solution

Thesis. For Plato, justice is not external distribution but ORDER and HARMONY: each part of the soul and each class of the city performing its own proper function without usurping another's.

- **Soul and city.** In the city, rulers rule, auxiliaries defend and producers provide; in the soul, reason governs spirit and appetite. Justice is the virtue that coordinates plurality into a harmonious whole.

- **What it is not.** Justice is not merely paying debts or obeying law; it is an inner and civic right-order grounded in functional differentiation and the rule of reason.

- **Criticism and reply.** Objection: Plato subordinates individuality to hierarchical functional differentiation. Reply: his aim is competence and organic harmony, and limited movement by aptitude is conceptually possible, so absolute class closure overstates the doctrine. Restricted citizenship, hierarchy and education-controlled selection nevertheless remain major egalitarian costs.

Verdict. Plato's justice is a powerful ideal of harmony and appropriate function; its enduring value is the insight that justice orders the whole, even if its hierarchical role-order is rejected by modern egalitarian citizenship.

MEMORY: Why this earns marks -- it gives the soul-city parallel, distinguishes harmony from distribution, and balances the standard criticism with its reply.

Primary owner: Philosophy Paper II - Social and Political Ideals.

Solved PYQ 6 - 2025 Q4(a), 20 marks

Question: How are both equality and liberty inadequate as social and political ideals without justice? Discuss.

Model solution

Thesis. Equality and liberty are indispensable but INADEQUATE by themselves, because each is indeterminate about its own content; justice is the architectonic ideal that supplies the ordering criteria and decides their scope and priority.

- **Why liberty alone is inadequate.** "Liberty" does not tell us WHICH liberties are basic, or how to weigh one person's freedom against another's. A tyrant and a citizen both invoke freedom; negative, positive and republican conceptions pull apart. Only a theory of justice ranks basic liberties and protects them (Rawls's lexical priority).
- **Why equality alone is inadequate.** "Equality" is under-specified -- of status, rights, opportunity, welfare, resources, capability or outcome? Each metric yields different institutions, and without a criterion, equality collapses into either mechanical levelling or empty formalism.
- **What justice supplies.** Justice provides the adjudicatory criteria -- desert, fairness, entitlement, need, capability, rectification and public reason -- that say which inequalities are justified and which liberties are basic. Compare the positions: liberty-first (Nozick) protects self-ownership but lets background injustice hollow real freedom; equality-first levelling flags oppression but flattens choice and desert; justice-as-ordering balances them by principle.
- **Indian anchor.** Ambedkar: political democracy (equal votes, formal liberty) is unstable without SOCIAL democracy -- liberty, equality AND fraternity -- so justice must reach lived social standing, not only procedure.

Verdict. Liberty and equality are the substance of a just society, but justice is its FORM: it is the ideal that disciplines and coordinates the other two, and without it each remains normatively incomplete.

MEMORY: Why this earns marks -- it proves inadequacy by showing each ideal is indeterminate about its own content, compares three ordering positions, anchors in Ambedkar, and ends with the architectonic verdict.

Primary owner: Philosophy Paper II - Crime and Punishment.

Solved PYQ 7 - 2019 Q4(c), 15 marks

Question: Does capital punishment weaken the doctrine of social justice? Discuss.

Model solution

Thesis. Capital punishment weakens the doctrine of social justice not through its abstract concept but through its ADMINISTRATION: because the penalty falls unequally on the poor and marginalised, its practice deepens the very inequalities social justice exists to correct.

- **Doctrine.** The arbitrariness / discrimination objection (canonical 5): quality of counsel, investigative bias and social position skew who is actually sentenced to death, so the penalty tracks disadvantage rather than desert. Proportionate desert (C10) itself demands equal treatment of like cases, which unequal administration violates. Duff's standing argument (C6) sharpens this: a polity that has denied a person the conditions of citizenship has weakened its moral standing to impose the ultimate penalty on him.

- **Objection -> reply.** Objection: these are implementation flaws, curable by procedure, not objections to the penalty in principle. Reply: for an IRREVERSIBLE penalty, systematic unequal application is not a contingent blemish but a reason the practice cannot satisfy the proportionate desert offered to justify it -- the fallibility verdict.

Verdict. Capital punishment weakens social justice because its irreversible and unequal administration entrenches disadvantage; separate the philosophical concept of desert from the socially skewed practice, and it is the practice that fails.

MEMORY: MEMORY: Why this earns marks -- it routes "social justice" through the arbitrariness objection plus Duff's standing (C6), and separates philosophical validity from implementation rather than moralising.

Primary owner: Philosophy Paper II - Crime and Punishment.

Solved PYQ 8 - 2020 Q3(c), 15 marks

Question: Do you think that retributive theory of punishment is against human rights? Discuss.

Model solution

Thesis. Retributive theory is against human rights only in its MAXIMISING form, which sanctifies suffering; in its LIMITING form, desert is precisely what PROTECTS rights, by capping how much the state may inflict.

- **Doctrine.** Distinguish retribution from revenge (canonical Trap 2): public, proportionate, impartial desert versus private, unlimited, appetite-driven payback. Kant treats the offender as an END and a responsible agent, never a mere means to social benefit (C1); Hegel's punishment honours the offender as the author of a maxim now applied to himself (C2). Limiting retributivism makes desert a two-sided CONSTRAINT -- no punishment without desert (floor), none beyond it (ceiling).

- **Objection -> reply.** Objection: retribution licenses cruelty and adds pointless suffering, offending dignity. Reply: the limiting version forbids exactly this, because proportionality caps severity; and the social-inequality objection is met by conceding that unfair background conditions can REDUCE desert, not by abandoning desert.

Verdict. Properly limited, retributivism is a rights-GUARANTEE: by tying punishment to proportionate desert it shields the offender from utilitarian excess. It threatens rights only when it forgets its own ceiling.

MEMORY: MEMORY: Why this earns marks -- it turns the expected "retribution vs rights" clash on its head via limiting retributivism (desert as ceiling, C1/C2) and answers the cruelty and inequality objections directly.

Primary owner: Philosophy Paper II - Crime and Punishment.

Solved PYQ 9 - 2021 Q2(b), 15 marks

Question: Explain the reformatory theory of punishment and discuss whether this is in tune with human dignity.

Model solution

Thesis. The reformatory theory is in tune with human dignity ONLY when it is bounded -- by consent, proportionality and a determinate ceiling. Unbounded, "treatment" can offend the very dignity it claims to serve.

- **Doctrine.** Reform treats the offender as capable of moral change and aims at rehabilitation, education and reintegration (canonical 1.6). The dignity CASE: this respects the person as an agent with a future rather than fixing a permanent criminal identity. The dignity WORRY: an indeterminate "cure-first, release-later" sentence hands officials open-ended power, and Foucault (C7) warns that a "gentle" reformatory apparatus can intensify discipline and normalisation rather than liberate.

- **Objection -> reply.** Objection: pure reform is paternalistic and desert-blind -- it could detain a minor offender indefinitely until "cured" while releasing a "reformed" serious offender, offending proportionality. Reply: the mixed theory bounds reform as an AIM within desert LIMITS (a proportionate ceiling), which preserves both the forward-looking good and the person's dignity.

Verdict. Reform is in tune with dignity when it is consent-respecting, proportionate and determinate; it violates dignity when it becomes coercive, open-ended normalisation.

MEMORY: MEMORY: Why this earns marks -- it gives a CONDITIONAL yes, states reform's dignity credentials AND the Foucault/indeterminacy dangers (C7), and resolves via the bounded mixed theory.

Primary owner: Philosophy Paper II - Crime and Punishment.

Solved PYQ 10 - 2023 Q4(a), 20 marks

Question: "Severity of punishment should be proportionate to the seriousness of the crime." Do you agree that while punishing a juvenile, the nature of the crime should be considered? Justify your answer.

Model solution

Thesis. I agree that severity should be proportionate to seriousness, and that the NATURE of a juvenile's crime is a relevant input -- but it must not OVERRIDE the reduced culpability of a developmentally immature agent, whose desert, and therefore deserved severity, is lower.

- **What makes it hard.** The stem pits the seriousness of the ACT against the status of the OFFENDER, and it forces a choice only if we conflate the two.

- **Doctrine.** Proportionality has two dimensions (C10): ordinal proportionality ranks worse crimes above lesser ones; cardinal proportionality fixes the overall severity scale. The maxim in the stem is ordinal. Crucially, desert presupposes responsible agency (canonical 1.2); a juvenile's capacities for deliberation and self-control are still forming, so CULPABILITY -- the basis of desert -- is reduced (the responsibility gradient). Reformatory prospects are also greater (canonical 1.6), and restorative / reintegrative approaches (C8, C9) fit the juvenile case. Separating the three questions (C4) shows the AIM (prevent harm, reform) does not settle the AMOUNT (desert-capped severity).

- **Objection -> reply (two chains).** (1) Objection: grave crimes are grave whoever commits them, so a heinous juvenile act warrants adult severity. Reply: the seriousness of the act is not irrelevant, but proportionate desert tracks culpability, which immaturity reduces -- so nature is one INPUT, not an OVERRIDE. (2) Objection: reduced culpability means impunity and ignores victims. Reply: reduced is not zero; a proportionate, reform-oriented and restorative response answers victims without treating a child as an adult.

- **Critical qualification.** Foucault's caution (C7): open-ended "treatment" of juveniles risks disciplinary control, so keep a determinate ceiling. Indian juvenile-justice and proportionality principles are legal facts (C15), not philosophical proofs, and no specific holding is asserted here.

Verdict. Agree with proportionality; in juvenile cases weigh the nature of the crime as ONE factor within a desert reduced by developmental immaturity -- individualised justice that neither trivialises grave harm nor punishes a child as an adult.

MEMORY: MEMORY: Why this earns marks -- a 20-marker that separates the three questions (C4), deploys ordinal/cardinal proportionality (C10) and the responsibility gradient, runs two objection chains, and lands a genuinely graded verdict.

Primary owner: Philosophy Paper II - Development and Social Progress.

Solved PYQ 11 - 2022 Q3(a), 20 marks

Question: Do you agree that economic development does not on its own lead to human development and social progress? Give reasons and justifications for your answer.

Model solution

Directive: *Do you agree... Give reasons and justifications* - take a defended position, argue both sides, and justify a graded conclusion.

Thesis. I largely agree: **economic development does not, on its own, lead to human development and social progress.** It is at most a *necessary enabler*; whether it becomes human development and progress depends on **conversion, distribution, agency and ecological limits.**

The ladder that grounds the claim. Distinguish **growth** (more output/income), **development** (structural + human change), and **social progress** (a *justified*, value-level improvement). Economic development sits on the lower rungs; human development (capabilities) and progress (normative) are higher rungs that the lower does not guarantee.

Reasons economic development alone is insufficient.

- *Distribution gap:* aggregate income can rise while inequality, exclusion and displacement rise with it - averages hide who gains.
- *Conversion gap (Sen):* the same income yields different real freedoms depending on **conversion factors** (disability, gender norms, environment); income is a means, capability is the measure.
- *Recognition:* redistribution of goods can leave **status hierarchies** (caste, gender, disability) intact - progress needs recognition too.
- *Agency and democracy:* development that treats people as beneficiaries but not **agents** misses a constitutive part of a developed life.
- *Ecological limit:* growth that offloads costs onto the future or the poor is not progress (the sustainability/justice frame).

Justification via the necessary/sufficient point. Some material base is plausibly a **necessary enabling condition** for broad capabilities - so economic development is not worthless. But it is **not sufficient:** it must be *converted*, *distributed* and *bounded* to count as human development and progress.

Objection and reply. *Objection:* no society achieved broad progress without economic development, so the two go together. *Reply/residual:* that shows economic development is an **enabler**, not that it is the *cause* - the enabling base still has to be converted by just institutions and agency; where it was not, growth coexisted with deprivation.

Graded verdict. Agree, with precision: economic development is a **necessary-enabling but not sufficient** condition; it becomes human development and social progress only through **just conversion into capabilities, recognition, democratic agency and ecological limits.**

Why this earns marks: it takes a clear stance, uses the ladder + capability map + recognition + democracy + ecology as *reasons*, answers the strongest counter (co-occurrence), and lands a qualified, defended verdict.

Primary owner: Philosophy Paper II - Gender Discrimination.

PYQ 12 - 2025 · 1(b) (10 marks)

Question: How does gender as a social construct affect individuals' opportunities, rights, and access to resources? Critically discuss.

Thesis / opening: Gender, as a social rather than biological construct in Beauvoir's and Butler's sense, shapes the opportunities, rights, and resource access individuals are granted or denied well before any individual merit is considered.

Model answer structure:

- Once woman is constructed as Other (Beauvoir) and gender is reproduced through performative repetition (Butler), that constructed meaning is used to justify differential access: to education and employment (opportunity), to inheritance and representation (rights, per Sessions 5 and 7), and to land, credit, and property (resources, per Session 5's five-level analysis). Because the construction is social rather than natural, the resulting inequality is a matter of formal versus substantive equality (Session 3) rather than an unavoidable fact of nature.
- Objection: if gender is 'only' a construct, one could argue the resulting disadvantage is not 'real' in the way material biological constraint is real, understating the urgency of reform. Reply: constructed does not mean unreal or trivial -- socially constructed disadvantage has entirely real material consequences (land denial, foeticide, exclusion from representation), and being constructed is precisely what makes it remediable through social and legal change.

Conclusion: Gender as a social construct systematically structures unequal opportunity, rights, and resource access; its constructed status is a reason for urgency and remediability, not for dismissal.

Why this earns marks: It answers the exact demand through a clear claim, named doctrine or evidence, analysis, qualification and a direct concluding verdict.

Primary owner: Philosophy Paper II - Caste Discrimination: Gandhi and Ambedkar.

PYQ 13 - 2023 · Q3(b) (15 marks)

Question: Critically analyse the social and political significance of Ambedkar's notion of annihilation of caste.

Thesis / opening: Annihilation is socially significant because it makes fraternity and association possible, and politically significant because it makes representation and equal citizenship real.

Model answer structure:

- Trace caste sanction, endogamy and graded inequality.
- Explain why reform of untouchability alone leaves the foundation intact.
- Social significance: free association, inter-caste kinship and fraternity.
- Political significance: autonomous organisation, rights, representation and social democracy.
- Raise legalism/state-competence limits and reply through the wider programme.

Conclusion: The doctrine seeks abolition of hereditary valuation, not merely adjustment of access to offices.

Why this earns marks: It answers the exact demand through a clear claim, named doctrine or evidence, analysis, qualification and a direct concluding verdict.

ORIGINAL MAINS PRACTICE WITH MODEL SOLUTIONS

Original Mains Practice 1 - 10 marks

Question: Justice concerns rightness rather than mere utility and orders liberty, equality and fraternity. Explain. Answer in about 150 words.

Model solution

Introduction: Gauba introduces justice as a standard of right allocation rather than a simple calculation of aggregate advantage. The claim does not make every utilitarian account impossible; it rejects the sacrifice of what is right merely because doing so produces a larger total benefit.

Core analysis: Barker supplies the ordering principle. Liberty cannot mean an unlimited licence through which the stronger destroys another's freedom, so it must be equal and regulated. Formal equality also remains shallow where unequal bargaining power and deprivation persist. Fraternity then converts concern for weaker members from discretionary charity into a claim arising from common social life. Justice integrates these values by deciding how each qualifies the others in institutions, rights and distribution.

Critical evaluation: The formula can become vague unless the allocation rule, affected group and institution are specified. A good answer therefore uses the triad as a test of arrangements, not as three decorative slogans.

Conclusion: Justice is therefore not another isolated ideal: it is the reasoned ordering that protects equal liberty, corrects structural inequality and turns fraternity from charity into reciprocal social membership.

Why this earns marks: It defines the issue, states the controlling distinction, adds one limitation and closes with a direct verdict suited to a 10-mark answer.

Original Mains Practice 2 - 10 marks

Question: Distinguish Aristotle's distributive and corrective justice. Why should neither be confused with retributive or restorative justice? Answer in about 150 words.

Model solution

Introduction: Aristotle separates justice in the distribution of common advantages from justice that corrects a wrong between particular parties. The distinction concerns different objects, standards and institutional tasks.

Core analysis: Distributive justice allocates offices, honours or goods according to geometric proportion and a relevant standard of worth. Corrective justice restores arithmetic equality in a bilateral transaction by correcting unjust gain and loss without ranking the parties by merit. Retributive justice instead concerns proportionate censure or punishment for wrongdoing, while restorative justice seeks repair of harm, responsibility and restored relations through a wider process. The latter two belong to penal philosophy and cannot be inferred merely from Aristotle's transactional correction.

Critical evaluation: Corrective remedies may overlap practically with compensation or repair, but conceptual overlap is not identity. Maintaining the boundaries prevents one vocabulary from silently answering four different questions.

Conclusion: Aristotle's distinction remains analytically useful only when allocation and bilateral rectification are kept separate from the penal aims of censure, punishment, repair and reconciliation.

Why this earns marks: It defines the issue, states the controlling distinction, adds one limitation and closes with a direct verdict suited to a 10-mark answer.

Original Mains Practice 3 - 15 marks

Question: Distinguish justice according to law from law according to justice. Show how legal, political and socio-economic justice expose the limits of mere legality. Answer in about 200 words.

Model solution

Introduction: Justice according to law asks whether valid rules are general, efficiently administered and impartially applied. Law according to justice asks the prior question whether those rules possess defensible moral value.

Core analysis: Alf Ross represents the first concern and Ernest Barker the second. Legal justice requires both non-arbitrary administration and scrutiny of legal content. Political justice tests whether institutions, rights, criticism and association distribute public power democratically rather than preserving privileged control. Socio-economic justice asks whether exploitation, deprivation and unequal material power hollow out formally equal legal and political status. A rule may therefore be impeccably administered while excluding a group from effective voice, courts or social opportunity.

Further development: The dimensions also constrain one another. Democratic enactment cannot by itself justify exclusion, moral aspiration cannot replace predictable law, and welfare provision cannot compensate for the denial of political voice. Justice requires institutional channels through which validity, value and material effect can be publicly tested together.

Critical evaluation: Moral review must not license officials to ignore enacted law whenever they disagree. The defensible settlement joins legality, public justification and institutional procedures for criticism and reform.

Conclusion: Legality is indispensable for non-arbitrary rule, but justice requires institutions whose content, distribution of power and material consequences can also withstand moral and democratic scrutiny.

Why this earns marks: It combines definition, named doctrinal evidence, comparison and a counter-position before giving a qualified 15-mark verdict.

Original Mains Practice 4 - 15 marks

Question: Is fair procedure sufficient for justice? Discuss through procedural liberalism, Macpherson's criticism and the substantive-justice response. Answer in about 200 words.

Model solution

Introduction: Procedural justice protects general rules, impartial application and freedom from force or fraud. These safeguards are indispensable because outcome-focused authority without due process can become arbitrary.

Core analysis: Gauba groups Hayek, Friedman and Nozick as procedure-centred liberals, although their doctrines differ: Hayek defends general rules and spontaneous order, Friedman voluntary exchange, and Nozick a historical entitlement theory of acquisition, transfer and rectification. Macpherson's objection targets the background conditions under which such procedures operate. Severe inequality can make a formally voluntary contract the product of dependence and can deny ordinary people the developmental freedom required for meaningful competition. Substantive justice therefore adds minimum needs, usable opportunity and attention to weaker parties.

Critical evaluation: Substance cannot erase procedure, and unequal outcomes do not automatically prove injustice. The qualified conclusion is that procedure is necessary but must be tested against background power and a defensible social floor.

Conclusion: Fair procedure is necessary but insufficient: rules earn legitimacy only when background power does not convert formally equal participation into predictable exclusion and when a defensible social minimum is secured.

Why this earns marks: It combines definition, named doctrinal evidence, comparison and a counter-position before giving a qualified 15-mark verdict.

Original Mains Practice 5 - 20 marks

Question: Compare Rawls, Nozick and Sen on the procedure, object and institutional requirements of justice. Answer in about 250 words.

Model solution

Introduction: Rawls, Nozick and Sen disagree about what justice evaluates, how its principles are selected and what institutions must do. Their theories should therefore be compared through procedure, object and remedy rather than placed on one left-right scale.

Core analysis: Rawls uses the original position and veil of ignorance to select two ordered principles governing the basic structure: equal basic liberties have priority, while the second principle contains fair equality of opportunity before the difference principle. Nozick rejects patterned end-state allocation and asks whether holdings arose through just acquisition and transfer, with rectification for historical injustice under a Lockean proviso. Sen shifts attention from ideal institutional design and resource shares to capabilities, actual lives, remediable injustice and comparative public reasoning.

Further development: Their temporal orientations differ as well. Rawls asks which enduring principles should regulate a fair basic structure; Nozick reconstructs the history that produced present holdings; Sen compares actual states to identify remediable injustice. A complete evaluation therefore distinguishes ideal design, historical legitimacy and practical improvement.

Critical evaluation: Rawls supplies a demanding institutional benchmark, Nozick exposes the importance of history and coercion, and Sen reveals informational and realisation gaps. Their standards remain rival: capability comparison cannot simply be inserted into entitlement, and rectification does not settle the design of fair institutions.

Conclusion: The strongest synthesis keeps Rawls's fair institutional structure, Nozick's historical and rectificatory challenge, and Sen's comparative attention to actual capability while refusing to collapse their rival standards into one formula.

Why this earns marks: It develops multiple dimensions and named evidence units, tests the strongest objection and reply, and reaches a balanced 20-mark judgment.

Original Mains Practice 6 - 20 marks

Question: Modern social justice requires redistribution, recognition, representation and duties beyond present national citizens. Critically examine with reference to affirmative action and global, intergenerational and environmental justice. Answer in about 250 words.

Model solution

Introduction: Modern social justice expands the question of fair shares into status, political voice and the temporal and territorial reach of obligation. Distribution alone cannot explain every patterned exclusion.

Core analysis: Redistribution addresses resources and opportunities; recognition addresses institutionalised status injury; representation asks who can participate as a peer in framing binding rules. Fraser's mature framework connects these dimensions through parity of participation. Affirmative action is therefore better justified through substantive equality, anti-subordination, representation and historical exclusion than as ordinary need-based welfare. Global justice asks how cross-border institutions and inequalities generate duties, while intergenerational and environmental justice test whether present benefits externalise irreversible burdens onto future persons and ecological systems. The 2026-27 National Overseas Scholarship can illustrate group-sensitive opportunity and representation without proving any one theory.

Further development: Representation also determines who defines the relevant harm. Future persons and distant populations cannot participate on ordinary electoral terms, so institutions need trusteeship, public reason, scientific evidence and review without pretending to speak infallibly for absent interests. This makes accountability a central part of expanded justice.

Critical evaluation: The expansion creates difficult questions about duty-bearers, democratic accountability and trade-offs with present deprivation. A defensible approach specifies the institution causing or capable of remedying harm, protects agency, and subjects group-sensitive measures to transparent review rather than assuming every unequal outcome requires one identical remedy.

Conclusion: Modern justice must connect resources, status and political voice across time and borders, but every extension still requires specified duty-bearers, accountable institutions and safeguards against both exclusion and paternalism.

Why this earns marks: It develops multiple dimensions and named evidence units, tests the strongest objection and reply, and reaches a balanced 20-mark judgment.

OPTIONAL ADVANCED DEPTH - NOT REQUIRED FOR A CORE ANSWER

Subject: Political Theory | **Tier:** Advanced | **GS/Optional relevance:** GS-II (Polity & Governance) conceptual foundation; PSIR Optional Paper-1 background. **Core area:** Justice as rightness, social ordering and allocation across legal, political and socio-economic spheres. **Grounded in:** O. P. Gauba, *An Introduction to Political Theory*, Fifth Edition (2009), Ch.19, PDF pp.432-445. **Source edition/cutoff:** Fifth Edition (2009); no post-2009 fact is assumed unless independently dated and tagged CURRENT:. **FACT:** = source-grounded | **ANALYSIS:** = analytical inference/synthesis | **CURRENT:** = dated current anchor | **WRONG:** = trap/misattribution. **Companion:** Political-Theory/basic/19_Justice-Concepts-and-Dimensions.md.

1. One-screen advanced map

GAUBA'S ALLOCATIVE FRAME:

SCARCITY + OPEN SOCIETY

|

v

JUSTICE = criteria of allocation

benefits + burdens

|

+-----+

|

v

TRADITIONAL JUSTICE

just man, differentiated roles

Plato

|

v

DIMENSIONS

legal | political | socio-economic

|

v

DEBATE

Ross -> justice according to law

Barker -> law according to justice

procedure only? or substantive distribution too?

|

v

FINAL ORDERING

liberty qualified by equality;

equality further qualified by fraternity

|

v

MODERN / SOCIAL JUSTICE

just society, transform injustice

reformers, social justice

FACT: Gauba's advanced move is to redefine justice from a conservative ethics of role-performance into a progressive politics of social allocation and institutional transformation (Gauba, PDF pp.438-442).

2. Scope, assumptions and conceptual boundary

- **FACT:** Gauba introduces allocative justice through scarcity of valued goods/opportunities and openness of the social order to criticism and revision. These are conditions of his chapter frame, not universal necessary conditions for every corrective, penal or institutional injustice claim (Gauba, PDF pp.432-433, 444-445).
- **FACT:** The chapter is not yet a full survey of rival theories of justice; it is the conceptual groundwork before those later debates, which is why Rawls appears only as a bridge figure here (Gauba, PDF pp.434-435, 443).
- **FACT:** Gauba treats legal, political and socio-economic justice as analytically distinct but not watertight, because economic injustice can erode legal and political justice from beneath (Gauba, PDF pp.441-442).
- **ANALYSIS:** The most important boundary for advanced answers is this: procedural justice and substantive justice are not mutually annihilating categories; Gauba criticizes procedure-only views without abolishing due process.

3. Direct-book argument reconstruction

1. FACT: Justice is introduced as a problem of allocation of goods, services, opportunities, benefits, power, honours and obligations in a scarcity situation (Gauba, PDF p.432).
2. FACT: In Gauba's frame the public search for allocative justice becomes effective in an open society where criteria can be discussed, contested and revised through appeal and protest; suppression of that contest does not make authoritarian institutions just (Gauba, PDF pp.433-434).
3. FACT: Gauba distinguishes justice from mere utility by separating good/bad as a continuum from right/wrong as a dichotomy; justice belongs to the latter field of rightness. This is his contrast, not a universal refutation of utilitarian accounts of justice (Gauba, PDF pp.433-435).
4. FACT: This move enables him to criticize utility-maximizing reasoning that sacrifices rightness and to note Rawls's anti-utilitarian response. Mill's own utilitarian account of justice prevents the whole tradition from being treated as definitionally indifferent to justice (Gauba, PDF pp.434-435).
5. FACT: Justice is dynamic because social consciousness changes: slavery, serfdom, untouchability, subordination of women and racial hierarchy can move from accepted normalcy to condemned injustice (Gauba, PDF pp.435-436).
6. FACT: Barker then supplies the chapter's integrative core: justice is the thread that orders liberty, equality and fraternity into a universal principle of governance (Gauba, PDF pp.436-438).
7. FACT: Liberty, on this reading, must be equal and regulated; equality, especially in the economic sphere, must be further qualified by fraternity in favour of the weaker party (Gauba, PDF pp.436-438).
8. FACT: The chapter then contrasts traditional justice, focused on the just man and role-duty, with modern social justice, focused on transforming unjust social arrangements themselves (Gauba, PDF pp.438-439).
9. FACT: Legal justice is unfolded in two senses-justice according to law and law according to justice-with Ross and Barker as contrasting exemplars (Gauba, PDF pp.439-440).
10. FACT: Political justice concerns democratic institutions, constitutional government, rule of law, criticism of government and freedom of association (Gauba, PDF pp.440-441).
11. FACT: Socio-economic justice seeks reallocation of material and moral benefits so the lower and weaker sections are uplifted and property is subordinated to the common good (Gauba, PDF pp.441-442).
12. FACT: The chapter closes by opposing procedure-only justice to substantive justice and arguing that minimum needs, opportunity and encouragement must be secured before desert-based rewards are defended (Gauba, PDF pp.442-445).

4. Definitions and distinctions

Concept	Advanced clarification
Justice as rightness	FACT: Justice corresponds to what is right and reasonable, not merely what is useful, pleasant or efficient (Gauba, PDF pp.433-435).
Dynamic justice	FACT: Justice changes with modern consciousness; it is not relativism without reason, but reason working through historically changing social awareness (Gauba, PDF pp.435-436).
Traditional justice	FACT: Justice centred on virtuous performance of role within a pre-given order; Gauba illustrates this through Plato (Gauba, PDF pp.438-439).
Social justice	FACT: Justice centred on transforming exploitative and oppressive arrangements so that due shares of organized social life reach the underprivileged (Gauba, PDF pp.438-442).
Justice according to law	FACT: Formal legality, impartial rule-application and efficient legal administration; Ross's line (Gauba, PDF pp.439-440).
Law according to justice	FACT: The law itself must answer to inherent moral value and humanly reasonable standards; Barker's line (Gauba, PDF p.440).
Procedural justice	FACT: Fair rules, equal application and absence of force/fraud, often analogized to a fair race (Gauba, PDF pp.442-444).

Concept	Advanced clarification
Substantive/distributive justice	FACT: In Gauba's chapter usage, attention to who actually gets improved life-chances and whether weaker sections are protected from structural disadvantage. Substantive, social and distributive justice are not universally synonymous across political theory (Gauba, PDF pp.444-445).

5. Thinker-by-thinker positions

Thinker	Position to retain
Plato	FACT: Justice is functional harmony: each class performs its proper task under the rule of reason; this is justice as ordered role-performance, not modern social redistribution (Gauba, PDF pp.438-439).
D.D. Raphael	FACT: Justice must be read in the light of modern consciousness; changing reasoned moral awareness shifts what counts as just (Gauba, PDF pp.435-436).
Ernest Barker	FACT: Justice integrates liberty, equality and fraternity; authority gives law validity, justice gives it value (Gauba, PDF pp.436-440).
Alf Ross	FACT: Justice is conformity with existing law through general rules correctly and impartially applied; he avoids appeal to extra-legal moral absolutes (Gauba, PDF pp.439-440).
Jeremy Bentham	FACT: Utility can balance pleasure and pain, but that does not by itself answer the question of justice as rightness (Gauba, PDF pp.434-435).
J.S. Mill	ANALYSIS: Mill develops a utilitarian account of justice and gives liberty special protection within it. He therefore qualifies any claim that utilitarianism is inherently incapable of recognizing justice, even though Gauba rejects reducing rightness to aggregate advantage.
John Rawls	FACT: Rawls is invoked as a major anti-utilitarian thinker and as someone who tries to incorporate substantive concerns within a structured procedural framework (Gauba, PDF pp.434-435, 443).
Herbert Spencer	FACT: Spencer pushes procedural justice to a harsh limit by resisting aid to the weak and effectively importing survival-of-the-fittest logic into civil society (Gauba, PDF pp.443-444).
Hayek / Friedman / Nozick	FACT: Gauba groups these thinkers as procedure-centred liberals suspicious of patterned redistribution, but their doctrines are not identical: Hayek stresses general rules and spontaneous order, Friedman voluntary market exchange, and Nozick historical entitlement plus rectification (Gauba, PDF pp.443-444).
C.B. Macpherson	FACT: Macpherson criticizes capitalist conditions for destroying creative freedom, thereby exposing the inadequacy of market-centered proceduralism (Gauba, PDF pp.443-445).

6. Competing perspectives

Semantic table split - Debate

- **Debate:** Traditional vs modern justice
- **Side 1:** FACT: Traditional justice asks whether persons perform role-specific duties within a given order (Gauba, PDF pp.438-439).
- **Side 2:** FACT: Modern/social justice asks whether the order itself must be transformed (Gauba, PDF pp.438-442).
- **Gauba's orientation:** FACT: Gauba clearly prefers the modern/social justice orientation.
- **Debate:** Ross vs Barker
- **Side 1:** FACT: Ross: justice = fair application of existing law (Gauba, PDF pp.439-440).
- **Side 2:** FACT: Barker: law must also possess moral value and answer to justice (Gauba, PDF p.440).

- **Gauba's orientation:** FACT: Gauba explicitly judges Barker's view sounder.
- **Debate:** Procedural vs substantive justice
- **Side 1:** FACT: Fair rules, no cheating, no force or fraud (Gauba, PDF pp.442-444).
- **Side 2:** FACT: Fair outcomes and life-chances for the poor and underprivileged (Gauba, PDF pp.444-445).
- **Gauba's orientation:** FACT: Gauba leans toward substantive justice while retaining the need for fair procedure.
- **Debate:** Utility vs justice
- **Side 1:** FACT: Utility measures benefit/harm and aggregate happiness (Gauba, PDF pp.434-435).
- **Side 2:** FACT: Justice asks what is right even when aggregate utility suggests otherwise (Gauba, PDF pp.434-435).
- **Gauba's orientation:** FACT: Justice cannot be reduced to utility.

7. Internal debates and criticisms

- FACT: Ross's formalism has a real strength: it protects against arbitrariness by insisting on general rules and impartial application (Gauba, PDF pp.439-440).
- FACT: Its weakness, as Gauba sees it, is that oppressive or stagnant law may remain impeccably administered while still blocking social progress (Gauba, PDF p.440).
- FACT: Barker's view restores value to law, but it also raises the hard question of how justice is to be identified; Gauba answers through reason informed by modern social consciousness rather than timeless dogma (Gauba, PDF pp.435-440).
- FACT: Plato's functional justice secures order through hierarchical functional differentiation. Gauba treats it as conservative because it begins from an ordered division of roles rather than transformation of unjust structures; it should not be simplified into absolutely closed hereditary caste because limited movement by aptitude remains conceptually possible (Gauba, PDF pp.438-439).
- FACT: Procedural justice gains moral force when rules are genuinely fair, but loses credibility when background inequality makes "open competition" a facade for privilege (Gauba, PDF pp.442-445).
- FACT: Substantive justice corrects that weakness by focusing on minimum needs and the lot of the underprivileged, yet Gauba does not propose abolishing procedural safeguards; rather, he rejects procedure as a sufficient test (Gauba, PDF pp.442-445).
- ANALYSIS: The practical synthesis is not "procedure or substance" but "procedure in the service of a substantively defensible social order."

8. Comparative matrix

Dimensions of justice

Dimension	Core concern	Typical institutional implication
Legal justice	FACT: Fair adjudication plus just legal content (Gauba, PDF pp.439-440).	FACT: Rule-bound courts, but also laws that reflect changing human values.
Political justice	FACT: Democratic representation, constitutional government, criticism and association (Gauba, PDF pp.440-441).	FACT: Universal franchise, rule of law, independent judiciary, rights of opposition.
Socio-economic justice	FACT: Fair reallocation of material and moral advantages for weaker sections (Gauba, PDF pp.441-442).	FACT: Social protection, anti-exploitation rules, property subordinated to common good.

Procedural vs substantive/distributive justice

Issue	Procedural justice	Substantive / distributive justice
Main question	FACT: Were the rules fair and impartially followed? (Gauba, PDF pp.442-444).	FACT: Did the poor and underprivileged get a fair chance and improved condition? (Gauba, PDF pp.444-445).

Issue	Procedural justice	Substantive / distributive justice
Model image	FACT: Fair race / fair market competition (Gaubá, PDF pp.443-444).	FACT: Minimum needs plus just distribution of life-chances (Gaubá, PDF pp.444-445).
Primary danger	WRONG: Can sanctify unequal outcomes produced inside unequal backgrounds.	WRONG: Can be caricatured as outcome-fixation if procedural safeguards are ignored.
Gaubá's balance	ANALYSIS: Necessary but insufficient.	ANALYSIS: Necessary for real justice, but not a licence to ignore due process.

9. Application without current-affairs dependence

- ANALYSIS: If a court procedure is technically proper but only the wealthy can sustain litigation, use the legal-justice distinction to show why access and value still matter.
- ANALYSIS: If elections occur regularly but money power excludes ordinary citizens from meaningful competition, political justice is formally present but substantively weakened.
- ANALYSIS: If a labour market is "open" yet workers accept demeaning terms for survival, procedural fairness in contract is not enough to prove justice.
- ANALYSIS: If social policy secures subsistence, health and education before rewarding higher performance, it reflects Gaubá's closing balance between need and desert.
- ANALYSIS: If a society glorifies order while assigning fixed roles to groups, compare it with Plato's functional justice and then show the modern demand to transform the order itself.

10. UPSC answer-engine prompts

- ANALYSIS: **Prompt 1:** Distinguish justice according to law from law according to justice. Which view is conceptually stronger, and why?
- ANALYSIS: **Prompt 2:** Explain how Gaubá moves from Plato's functional justice to modern social justice.
- ANALYSIS: **Prompt 3:** "Justice is not liberty, equality and fraternity separately, but their proper ordering." Discuss.
- ANALYSIS: **Prompt 4:** Why is a fair procedure not always a fair outcome? Illustrate without relying on current affairs.
- ANALYSIS: **Prompt 5:** Show how minimum needs and desert are balanced in Gaubá's concluding account of justice.

11. Cross-links and exclusions

- FACT: Foundation companion: [Political-Theory/basic/19_Justice-Concepts-and-Dimensions.md](#).
- FACT: Prior conceptual grounding: [Political-Theory/basic/18_Liberty-Equality-and-Property.md](#) and [Political-Theory/advanced/18_Liberty-Equality-and-Property.md](#).
- ANALYSIS: The next justice topic in this sequence turns to rival theories of justice; this file should remain the conceptual threshold, not a substitute for that fuller debate.
- ANALYSIS: For implementation detail on deprivation, reservations, welfare delivery and measurable outcomes, refer in prose to the Social-Justice module rather than extending this file into policy administration.
- WRONG: Do not treat this file as a ready-made constitutional note. -> FACT: It is a theory file about standards, dimensions and rival criteria of justice.

12. Factual-risk checks

- WRONG: Justice according to law and law according to justice are identical. -> FACT: Gauba explicitly distinguishes legal validity from moral value (Gauba, PDF p.440).
- WRONG: Plato's justice and modern social justice are the same because both seek order. -> FACT: Plato emphasizes right performance within a hierarchy of differentiated functions; modern justice emphasizes transformation of unjust structures (Gauba, PDF pp.438-439).
- WRONG: Procedural justice is enough if nobody cheats. -> FACT: Gauba argues that unequal background conditions can still make outcomes unjust (Gauba, PDF pp.442-445).
- WRONG: Substantive justice abolishes the importance of fair procedure. -> FACT: Gauba attacks procedure-only theories, not procedure itself.
- FACT: References to constitutional promises or democratic mechanisms in this chapter are read here as conceptual illustrations inside a 2009 text, not silently updated present-day institutional claims (Gauba, PDF pp.441-442).

13. Sources, metadata and tags

- FACT: Main direct-book anchors used here: allocation and moral framing at PDF pp.432-438; traditional/modern shift and legal justice at PDF pp.438-440; political and socio-economic justice at PDF pp.440-442; procedural/substantive justice and conclusion at PDF pp.442-445.
- FACT: Companion file: Political-Theory/basic/19_Justice-Concepts-and-Dimensions.md.
- FACT: Prior concept file: Political-Theory/advanced/18_Liberty-Equality-and-Property.md.
- FACT: Module anchors: Political-Theory/README.md and Political-Theory/00_Master-Framework.md.
- ANALYSIS: Tag discipline in this file: direct reconstructions and named positions are marked FACT:: applications and answer-prompts are marked ANALYSIS:: pitfalls are marked WRONG:.
- ANALYSIS: No dated current anchor is needed because the chapter is conceptual; all examples are handled as historical or analytical unless separately verified elsewhere.

CONSOLIDATED REGISTER NOTES

EMBEDDED TWELVE-PANEL ASCII REVISION ATLAS

This text edition preserves the same source-grounded revision route as the separate printable ASCII deliverable.

ASCII PANEL 1/12 - Gauba's Allocative Frame, Rightness and Dynamic Justice

CENTRAL FOCUS

Gauba's Allocative Frame, Rightness and Dynamic Justice

[1] Gauba frames justice through allocative contest under scarcity and openness.

|

v

[2] Rightness cannot be reduced to aggregate usefulness, though Mill complicates a blanket anti-utilitarian claim.

|

v

[3] Dynamic social consciousness explains why accepted hierarchy can become recognised injustice.

|

v

[4] The allocative frame is not an exhaustive definition of corrective or penal justice.

|

v

VERDICT -> Gauba's scarcity-open society frame is allocative, not universal.

ANSWER USE -> Define the frame and immediately state its boundary.

ASCII PANEL 2/12 - Traditional Justice, Social Justice and Barker's Ordering

CENTRAL FOCUS

Traditional Justice, Social Justice and Barker's Ordering

- [1] Traditional justice orders differentiated roles; modern social justice transforms oppressive arrangements.
- |
- v
- [2] Plato's functional harmony is hierarchical but should not be simplified into completely closed hereditary caste.
- |
- v
- [3] Barker orders liberty, equality and fraternity rather than listing them separately.
- |
- v
- [4] Fraternity converts protection of weaker members from charity into a claim of common life.
- |
- v

VERDICT -> Justice orders liberty, equality and fraternity into one scheme.

ANSWER USE -> Move from Plato's roles to modern structural transformation.

ASCII PANEL 3/12 - Law, Legality and the Institutional Dimensions of Justice

CENTRAL FOCUS

Law, Legality and the Institutional Dimensions of Justice

- [1] Ross asks whether existing law is impartially administered.
- |
- v
- [2] Barker asks whether law itself possesses defensible moral value.
- |
- v
- [3] Legal, political and socio-economic justice test different but connected institutions.
- |
- v
- [4] Validity, democratic voice and material access must remain analytically distinct.
- |
- v

VERDICT -> Valid administration cannot settle the justice of legal content.

ANSWER USE -> Compare Ross and Barker before adding political and material dimensions.

ASCII PANEL 4/12 - Aristotle, Distribution and Corrective Justice

CENTRAL FOCUS

Aristotle, Distribution and Corrective Justice

- [1] Aristotle separates geometric distributive proportion from arithmetic corrective equality.
- |
- v
- [2] Modern need-based allocation is not Aristotle's own coordinate criterion.
- |
- v
- [3] Corrective justice is bilateral and transactional.
- |
- v
- [4] Retributive and restorative justice remain separate penal-philosophy owners.
- |
- v

VERDICT -> Distribution, bilateral correction and punishment ask different questions.

ANSWER USE -> State Aristotle's standard and the penal-justice boundary.

ASCII PANEL 5/12 - Procedural Liberalism, Background Inequality and Macpherson

CENTRAL FOCUS

Procedural Liberalism, Background Inequality and Macpherson

- [1] Hayek, Friedman and Nozick are grouped by Gauba but defend different procedural arguments.
 - |
 - v
- [2] Macpherson shows how background inequality can hollow out formally voluntary competition.
 - |
 - v
- [3] Due process remains necessary even when procedure is substantively incomplete.
 - |
 - v
- [4] A fair-looking rule is not sufficient proof of a fair social order.
 - |
 - v

VERDICT -> Procedure is necessary but background power can defeat its purpose.

ANSWER USE -> Distinguish Hayek, Friedman and Nozick before using Macpherson.

ASCII PANEL 6/12 - Nozick, Merit, Need and Desert

CENTRAL FOCUS

Nozick, Merit, Need and Desert

- [1] Nozick's theory is historical, entitlement-based and unpatterned.
 - |
 - v
- [2] Acquisition is limited by a Lockean proviso; unjust history activates rectification.
 - |
 - v
- [3] Merit, need and desert answer different distributive questions.
 - |
 - v
- [4] Progressive taxation can finance a floor but does not itself reward merit.
 - |
 - v

VERDICT -> Entitlement requires acquisition, transfer, proviso and rectification.

ANSWER USE -> Separate merit, need and desert rather than calling all fairness.

ASCII PANEL 7/12 - Rawls, Sen and the Information of Justice

CENTRAL FOCUS

Rawls, Sen and the Information of Justice

- [1] Rawls states two lexically ordered principles, not three independent principles.
 - |
 - v
- [2] Fair equality of opportunity precedes the difference principle within the second principle.
 - |
 - v
- [3] Sen separates capability as informational space from comparative, realisation-focused method.
 - |
 - v
- [4] Rawls, Nozick and Sen disagree over procedure, object and institutional requirement.
 - |
 - v

VERDICT -> Rawls, Nozick and Sen evaluate different objects by different methods.

ANSWER USE -> Preserve Rawls's priority rules and Sen's information-method distinction.

ASCII PANEL 8/12 - Recognition, Representation and Indian Applications

CENTRAL FOCUS

Recognition, Representation and Indian Applications

[1] Fraser joins redistribution and recognition through parity of participation.

|

v

[2] Her mature framework adds representation without claiming ownership of every recognition theory.

|

v

[3] Affirmative action is not ordinary need-based welfare.

|

v

[4] The 2026-27 National Overseas Scholarship illustrates group-sensitive opportunity, not proof of one theory.

|

v

VERDICT -> Distribution alone misses status and political representation.

ANSWER USE -> Use the scholarship anchor only as an illustration of opportunity.

ASCII PANEL 9/12 - Objection-Reply Chains and Directive Control

CENTRAL FOCUS

Objection-Reply Chains and Directive Control

[1] Objection-reply chains must test procedure, historical entitlement and substantive life-chances.

|

v

[2] Directive words determine whether the answer distinguishes, evaluates or reconstructs.

|

v

[3] Global and intergenerational bridges require specified duty-bearers.

|

v

[4] Current applications must remain illustrations rather than doctrinal proof.

|

v

VERDICT -> Expanded justice needs named institutions and accountable duties.

ANSWER USE -> Run one objection-reply chain before the global or future bridge.

ASCII PANEL 10/12 - Argument Architecture, Provenance and Final Recall

CENTRAL FOCUS

Argument Architecture, Provenance and Final Recall

[1] A justice answer moves from standard to institution, distribution, objection and graded verdict.

|

v

[2] Quotation discipline separates verified wording from paraphrased positions.

|

v

[3] Thirteen cross-applied PYQs retain five distinct Philosophy owners.

|

v

[4] Final recall: justice joins fair procedure, defensible purpose, status and effective participation.

|

v

VERDICT -> Justice joins rule, purpose, history, capability and participation.

ANSWER USE -> End with a graded institutional judgment, not a slogan.

ASCII PANEL 11/12 - MCQ Remediation and Trap Repair

CENTRAL FOCUS

MCQ Remediation and Trap Repair

[1] Close options turn on allocation, transaction, punishment and recognition boundaries.

|
v

[2] Original position differs from veil of ignorance; capability differs from functioning.

|
v

VERDICT -> Close options fail when adjacent justice categories are collapsed.

ANSWER USE -> Identify object, standard and remedy before selecting an answer.

ASCII PANEL 12/12 - PYQ Ownership and Answer Practice

CENTRAL FOCUS

PYQ Ownership and Answer Practice

[1] The master flow ends with ownership, current-anchor caution and answer architecture.

|
v

[2] No Political Theory topic acquires proxy ownership of Philosophy PYQs.

|
v

VERDICT -> Cross-application preserves five Philosophy ownership routes.

ANSWER USE -> Keep PYQ provenance and current-anchor caution explicit.

ONE-PAGE CONCEPT GRID

Concept / thinker	Exam-ready formulation
Justice	Gauba introduces justice through the fair allocation of benefits and burdens, especially where valued goods are scarce and criteria are open to contestation; this is his chapter frame, not an exhaustive definition of every form of justice (Gauba, PDF pp.432-433).
Open society	A society where existing arrangements may be criticized and revised through public reasoning, making the search for justice meaningful (Gauba, PDF p.433).
Legal justice	Justice in the legal sphere may mean either fair administration according to existing law or testing law itself against standards of justice (Gauba, PDF pp.439-440).
Political justice	Transformation of institutions, rights and procedures so that political power reflects the people rather than privileged groups (Gauba, PDF pp.440-441).
Socio-economic justice	Reordering social and economic relations so that exploitation is checked and the material and moral gains of social life reach weaker sections (Gauba, PDF pp.441-442).
Procedural justice	Justice secured through fair rules, impartial application and non-cheating, often modeled on market or competition rules (Gauba, PDF pp.442-444).
Substantive / distributive justice	In this chapter Gauba treats substantive, social and distributive concerns together: justice is judged by whether actual arrangements improve the condition and life-chances of the poor and underprivileged, not by procedure alone. The terms are not universally synonymous across political theory (Gauba, PDF pp.442-445).
Social justice	In Gauba's modern usage, a progressive demand to transform oppressive social conditions and secure what is due to the underprivileged from organized social life (Gauba, PDF pp.438-442).
Justice according to law	This asks whether decisions are made by general rules, applied impartially and efficiently under existing law; Alf Ross represents this line (Gauba, PDF pp.439-440).
Law according to justice	This asks whether the law itself has moral value and conforms to what is right-in-itself; Ernest Barker represents this line (Gauba, PDF p.440).

Concept / thinker	Exam-ready formulation
Core warning	If law is valid, it is automatically just. -> Gauba prefers Barker's view that validity and value are distinct, and that law is strongest when it has both authority and justice (Gauba, PDF p.440).
Balance point	Due process still matters; substantive justice does not erase the need for impartial procedures.

CORE REVISION SPINE

- Justice then appears in legal, political and socio-economic dimensions, which are distinct for analysis but continuous in practice (Gauba, PDF pp.439-442).
- Legal justice, political justice and socio-economic justice are distinct but continuous dimensions (Gauba, PDF pp.439-442).
- Justice is the bridge-topic that takes liberty, equality and fraternity out of slogan form and turns them into an ordering principle for public life (Gauba, PDF pp.436-438).
- Gauba insists that justice cannot be reduced either to legal regularity alone or to vague moral feeling; it is both a question of procedures and of the value-content of social arrangements (Gauba, PDF pp.439-444).
- Gauba frames justice as a political allocation question where social advantages are scarce and their distribution can be openly debated and revised; corrective, penal and other justice questions need not all take this allocative form (Gauba, PDF pp.432-433).
- Gauba distinguishes good/bad from right/wrong and treats justice as aligned with the latter: a question of what is right and reasonable, not merely what is useful. This is his anti-utilitarian contrast, not proof that every utilitarian theory is incapable of giving an account of justice (Gauba, PDF pp.433-435).
- Justice is dynamic because social consciousness changes; arrangements once accepted as just may later be condemned as unjust, as with slavery, serfdom or caste-based degradation (Gauba, PDF pp.435-436).
- Ernest Barker's key point is that justice orders liberty, equality and fraternity into an integrated whole rather than leaving them as three isolated slogans (Gauba, PDF pp.436-438).
- Modern social justice shifts emphasis from the virtuous individual in a fixed order to the just society that must transform oppressive conditions themselves (Gauba, PDF pp.438-439).
- The contemporary debate finally turns on whether fair procedure is enough, or whether fair distribution and real improvement for weaker sections are the primary tests of justice (Gauba, PDF pp.442-445).
- The chapter's answer-ready core is: justice means fair rules plus fair social purpose, with minimum needs secured before differential rewards are defended.
- A law that is impartially applied but bars the poor from real access to courts shows why legal regularity alone may fall short of justice.

HIGH-RISK TRAPS

- Trap repair: Justice is only whatever the law says. -> Gauba explicitly distinguishes legal validity from moral value and prefers a richer view where law must also answer to justice (Gauba, PDF p.440).
- Trap repair: Social justice means only welfare charity. -> Gauba treats it as a structural and rights-based transformation of social conditions, especially for the oppressed and underprivileged (Gauba, PDF pp.438-442).
- Trap repair: Procedural fairness settles everything. -> A fair-looking procedure can still operate inside severe inequality and leave outcomes unjust (Gauba, PDF pp.442-445).
- Trap repair: Substantive justice can ignore due process. -> Gauba does not reject procedure; he rejects the claim that procedure alone is enough.
- Trap repair: Liberty, equality and fraternity are separate slogans to be listed one after another. -> Barker's central point is that justice orders and reconciles them into one coherent scheme (Gauba, PDF pp.436-438).

ANSWER SPINE

1. Define the exact doctrine or controversy in the question.
2. State a qualified thesis before narration begins.
3. Reconstruct premises, mechanism and conclusion.
4. Add named thinkers and one precise distinction.
5. Present the strongest objection, reply and residual limitation.
6. End with a graded verdict tied to the directive.

COMPLETE TOPIC CHECKLIST

- **Gauba-specific frame:** scarcity and openness organise the chapter's allocative inquiry; they are not universal necessary conditions for every form of justice.
- **Moral axis:** rightness is distinguished from aggregate utility without pretending that Mill offers no utilitarian theory of justice.
- **Historical movement:** Plato's hierarchical functional differentiation is contrasted with modern transformation of oppressive structures.
- **Barker's ordering:** justice integrates equal liberty, substantive equality and fraternity.
- **Institutional dimensions:** legal validity and administration, political voice and socio-economic power remain connected but distinct.
- **Aristotelian boundary:** distributive proportion and bilateral corrective equality are not retributive or restorative justice.
- **Procedure/substance:** Hayek, Friedman and Nozick are doctrinally distinct; Macpherson exposes unequal background conditions.
- **Distribution:** merit, need and desert require separate standards; taxation does not itself reward merit.
- **Rawls:** two principles with lexical priority; fair equality of opportunity precedes the difference principle.
- **Nozick:** historical entitlement includes a proviso and under-specified rectification.
- **Sen and Fraser:** capability/informational space differs from comparative method; redistribution, recognition and representation serve parity of participation.
- **Applied caution:** affirmative action is not ordinary need-welfare; the 2026-27 scholarship is an illustration, not theoretical proof.
- **Ownership:** thirteen Philosophy PYQs remain cross-applied under their five primary owners.

MASTER ANSWER FLOW

DEFINE THE JUSTICE QUESTION

|

v

IDENTIFY OBJECT -> allocation | transaction | punishment | status | voice

|

v

IDENTIFY STANDARD -> rule | rightness | proportion | entitlement | capability

|

v

TEST INSTITUTION -> law | politics | economy | family | transnational order

|

v

RUN OBJECTION -> background power | history | information | representation

|

v

GRADED VERDICT -> fair procedure + defensible purpose + effective participation